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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;

DEFENDANT

Case No.: CGC-21-594102

Underlying personal injury

Related: A173827

**DECLARATION OF
FRANCISCUS DYLAN ROSARIO
(CCP 2015.5)**

Judge: Hon. Garrett L. Wong
No hearing noticed on this paper.

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I, Franciscus Dylan Rosario, am the plaintiff in this action. I represent myself. I make this declaration from my own knowledge of what I received, filed, or read, except where I say a fact is the contents of a paper or transcript I have read. Where I quote a paper or transcript, I identify it as

1 such. Statutes named in an item are my identification of the rule as it appears in the papers I have
2 read.

3 This paper is a declaration authenticating twenty-two excerpts. I attach those excerpts as Exhibits
4 D-01 through J-03. For each exhibit I identify the speaker, the date, the public locator, the quota-
5 tion, and the statute.

6 **WHAT THIS PAPER IS**

7 Contra Costa Case No. C26-02801 is common-law deceit under Civil Code sections 1709 and
8 1710. Paragraph 18 of the verified complaint in that case states the civil frame. This declaration
9 authenticates the excerpts that belong with the administrative review the February 25, 2021 denial
10 letter invited.

11 Insurance Code section 790.03(h) opens: “Knowingly committing or performing with such fre-
12 quency as to indicate a general business practice any of the following unfair claims settlement
13 practices.” The regulations apply to Claim No. 1004-09-1054. The claim file is in the possession
14 of CSAA Insurance Exchange. Title 10, California Code of Regulations, section 2695.5(a) requires
15 a complete written response and the requested claim file within 21 calendar days of a Department
16 inquiry.

17 Title 10, California Code of Regulations, section 2695.7(d): “Every insurer shall conduct and
18 diligently pursue a thorough, fair and objective investigation and shall not persist in seeking infor-
19 mation not reasonably required for or material to the resolution of a claim dispute.”

20 Section 2695.7(b)(1), third-party sentence: “Every insurer that denies or rejects a third party claim,
21 in whole or in part, or disputes liability or damages shall do so in writing.” The factual-list sen-
22 tences in section 2695.7(b)(1) address first-party claims. The explanation issue for this third-party
23 denial is Insurance Code section 790.03(h)(13).

24 Section 790.03(h)(6) addresses insureds. I am a third-party claimant.

25 Vehicle Code section 20001 is the driver’s duty to stop after an injury accident. The examination
26 question is the claim file for Claim No. 1004-09-1054.

27 The San Francisco case numbers below identify the public locators of the attached excerpts.

DEFENDANT EXCERPTS

Exhibit D-01. I never left

I have read the deposition of Subhi Abdelhalim, taken September 30, 2022, in CGC-21-594102. I attach the clipped page as Exhibit D-01. The public locator is that deposition, transcript page 19. The quotation is: “I never left.” The statute I identify is Insurance Code section 790.03(h) and 10 CCR 2695.7(d). The sworn account denied leaving the scene. The claim file closed on a no-contact / no-liability theory without the 911 recording that later admitted contact.

Exhibit D-02. no impact, no anything

I have read the same deposition at transcript page 26. I attach the clipped page as Exhibit D-02. The quotation is: “There’s no part of my van, no impact, no anything.” The statute I identify is Insurance Code section 790.03(h) and 10 CCR 2695.7(d). The February 25, 2021 denial rested on a no-liability conclusion. The 911 recording later admitted contact in the insured’s voice.

Exhibit D-03. called AAA the same day

I have read the same deposition at transcript page 43. I attach the clipped page as Exhibit D-03. The quotation is: “And I told her what happened and I called AAA right away to claim, in case if something...” The statute I identify is Insurance Code section 790.03(h), 10 CCR 2695.5(a), and 10 CCR 2695.7(d). The insured reported to AAA the day of the collision. The claim file should show what statement, if any, was taken before the denial.

Exhibit D-04. Yes. That is my voice

I have read the certified Reporter’s Transcript, CGC-21-594102, Volume 8, April 17, 2025. I attach the clipped pages as Exhibit D-04. Voice identification is at reporter page 108: “Yes. That is my voice.” Related 911 words appear on reporter pages 107, 109-110, 117-120, and 128-129, including “I barely hit him with anything” and later “boom” / “I just hit him” language. The statute I identify is Insurance Code section 790.03(h) and 10 CCR 2695.7(d). The recording was later disclaimed in discovery motions, then authenticated by the insured as his voice. The February

25, 2021 denial was never corrected on the public record cited here.

CSAA EXCERPTS

Exhibit C-01. February 25, 2021 denial letter

I received the February 25, 2021 letter signed Sarah Rash, Claims Representative, CSAA Insurance Exchange, Claim No. 1004-09-1054. I attach the letter page as Exhibit C-01. The quotations are: “We have concluded our investigation of your claim.” And: “Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim.” The statute I identify is Insurance Code section 790.03(h)(13), 10 CCR 2695.7(b)(1) (third-party writing sentence), 10 CCR 2695.7(d), and 10 CCR 2695.5(a). The letter closed the claim without listing the facts reviewed and without mentioning the 911, body-worn camera, or CAD materials indexed by the police report CSAA ordered.

Exhibit C-02. Metropolitan Reporting Bureau order

I have read the Metropolitan Reporting Bureau sendout printed with Claim No. 1004-09-1054, Account No. 04767X, Attention Tonyia McConnaughay, Report No. 210079556. I attach the order face as Exhibit C-02. The face prints “THANK YOU FOR THE ORDER!”; Account No. 04767X; Claim Number 1004-09-1054; Report Num. 210079556; Insured SUBHI A ABDELHALIM. The statute I identify is 10 CCR 2695.7(d) and Insurance Code section 790.03(h). Ordering the police report is not the same as obtaining the 911 audio, body-worn camera, or CAD before denial.

Exhibit C-03. SFPD Report No. 210079556

I have read San Francisco Police Department Local Report 210079556, Officer Fernandez, February 4, 2021. I attach the CAD / dispatch pages as Exhibit C-03. The face prints Computer Aided Dispatch Number (CAD) 210352080. The narrative pages state officers were dispatched to a vehicle collision with injury at Fifth and Tehama. The statute I identify is 10 CCR 2695.7(d) and Insurance Code section 790.03(h). The later defense account of the file omitted those emergency-service materials.

PORTER SCOTT AND DEFENSE-COUNSEL EXCERPTS

Exhibit P-01. reviewed the available evidence

I have read the anti-SLAPP memorandum filed April 9, 2026, in CGC-25-631802, File & Serve transaction 79007560, Document ID 10152120, memorandum page 13. I attach that page as Exhibit P-01. The paper states that CSAA “reviewed the available evidence, including the statements of its Insured,” and frames the denial as compliance with Insurance Code section 790.03 and 10 CCR 2695.7. The statute I identify is Insurance Code section 790.03, 10 CCR 2695.7, and Code of Civil Procedure section 425.16 as the motion context.

Exhibit P-02. denial letter protected even if false or fraudulent

I have read the same memorandum at page 14. I attach that page as Exhibit P-02. The quotation is: “The issuance of that denial letter, be it false, negligently issued, fraudulent, or otherwise, is protected conduct and subject to the Anti-SLAPP statute’s protections.” The statute I identify is Code of Civil Procedure section 425.16 and Civil Code section 47(b). The production path remains 10 CCR 2695.5(a). Court privilege labels do not produce the claim file.

Exhibit P-03. demurrer litigation privilege

I have read the demurrer memorandum filed April 13, 2026, in CGC-25-631802, File & Serve transaction 79038567, Document ID 10157163, memorandum pages 5, 6, 14, and 16. I attach those pages as Exhibit P-03. The paper asserts litigation privilege under Civil Code section 47(b) and Code of Civil Procedure section 425.16 as a bar, including: “litigation privilege presents an incurable legal bar.” Production remains under 10 CCR 2695.5(a).

Exhibit P-04. performed an investigation

I have read the Code of Civil Procedure section 436 memorandum filed April 22, 2026, in CGC-25-631802, File & Serve transaction 79127897, Document ID 10174569, memorandum pages 8-9. I attach those pages as Exhibit P-04. The quotation is: “CSAA performed an investigation, determined that its insured was not liable, and informed Plaintiff of their decision.” The statute I

1 identify is Civil Code section 47(b), Code of Civil Procedure section 436 as the motion context,
2 Insurance Code section 790.03, and 10 CCR 2695.7.

3 **Exhibit P-05. protected conduct in CGC-25-631801**

4 I have read the anti-SLAPP memorandum filed April 9, 2026, in CGC-25-631801, File & Serve
5 transaction 79007825, Document ID 10152305, memorandum pages 5-6, 11-12, 14-15, and 20. I
6 attach those pages as Exhibit P-05. The paper uses “protected conduct under Civil Code section
7 47(b)” ; “litigation privilege”; “this is protected conduct”; and activity “squarely protected conduct
8 under Code Civ. Proc. section 425.16 and Civ. Code section 47(b).” Production remains under 10
9 CCR 2695.5(a).

10 **Exhibit P-06. Motion in Limine No. 6**

11 I have read Motion in Limine No. 6, filed January 17, 2025, in CGC-21-594102, File & Serve
12 transaction 80936030, clerk’s transcript volume 1, pages 149-151. I attach those pages as Exhibit
13 P-06. The paper asks to exclude “audio of a 911 call purported to be related to the incident” that
14 plaintiff “failed to produce in discovery.” The statute I identify is Insurance Code section 790.03(h)
15 and 10 CCR 2695.7(d).

16 **Exhibit P-07. Motion in Limine No. 17**

17 I have read Motion in Limine No. 17, filed January 17, 2025, in CGC-21-594102, File & Serve
18 transaction 80936053, clerk’s transcript volume 1, pages 238-241. I attach those pages as Exhibit
19 P-07. The quotations are: “Defendant has no idea where this 911 call log or audio recording came
20 from and who created it.” And: materials “not produced during discovery, rather produced at the
21 eleventh hour prior to trial.” The statute I identify is Insurance Code section 790.03(h) and 10 CCR
22 2695.7(d).

23 **Exhibit P-08. So this is news to me**

24 I have read the reporter’s transcript of February 18, 2025, in CGC-21-594102, pages 139-141. I
25 attach those pages as Exhibit P-08. Defense counsel said: “So this is news to me.” That statement
26 followed discussion that the 911 recording had been obtained May 12, 2021, and served earlier.

1 The statute I identify is Insurance Code section 790.03(h) and 10 CCR 2695.7(d).

2 **Exhibit P-09. They were provided by Dolan**

3 I have read the certified Reporter's Transcript, CGC-21-594102, Volume 7, April 16, 2025, page
4 213, lines 13-15. I attach that page as Exhibit P-09. The quotation is: "Sure. They were provided
5 by Dolan. He has had them for whatever, sure." The statute I identify is Insurance Code section
6 790.03(h) and 10 CCR 2695.7(d). After the motions in limine disclaimed the recording, counsel
7 stated the materials were provided by Dolan.

8 **Exhibit P-10. we subpoenaed the police records**

9 I have read the same Volume 7 at page 157, lines 5-9. I attach that page as Exhibit P-10. The
10 quotation is: "we subpoenaed the police records for the incident and this is not anything that we
11 received as part of the subpoena." The statute I identify is Insurance Code section 790.03(h) and
12 10 CCR 2695.7(d).

13 **Exhibit P-11. Compex subpoena CA1147102-021**

14 I have read Compex Subpoena Order CA1147102-021, signed February 1, 2024, by Alberto Reyna
15 of Phillips, Spallas & Angstadt LLP, in CGC-21-594102. I attach the SUBP-010 face and Attach-
16 ment 3 as Exhibit P-11. The process seeks "INCLUDING BUT NOT LIMITED TO ... RECORD-
17 INGS, 9-1-1 CALL ..." and "ANY AND ALL VIDEO RECORDINGS FROM ANY ... BODY-
18 WORN CAMERA (BWC) RELATED TO" Report No. 210079556. The statute I identify is Insur-
19 ance Code section 790.03(h) and 10 CCR 2695.7(d).

20 **Exhibit P-12. ordinary claims letter versus immunity claim**

21 I have read the verified complaint in Contra Costa Case No. C26-02801, paragraphs 3, 18, and
22 27, and the April 9, 2026 memorandum in CGC-25-631802, File & Serve transaction 79007560,
23 Document ID 10152120, pages 13-14. I attach those pages as Exhibit P-12. The complaint side
24 pleads the February 25, 2021 letter as an ordinary claims-handling communication issued years
25 before any suit. The memorandum side states that CSAA reviewed the available evidence and
26 complied with Insurance Code section 790.03 and 10 CCR 2695.7, and that the denial letter is

1 protected conduct even if false, negligently issued, or fraudulent. The statute I identify is Civil
2 Code section 47(b), Code of Civil Procedure sections 425.16 and 425.17, Insurance Code section
3 790.03, and 10 CCR 2695.7. This administrative review is the path the denial letter invited.

4 **COURT-RECORD EXCERPTS**

5 **Exhibit J-01. Vehicle Code sections not evidence**

6 I have read the certified Reporter's Transcript, CGC-21-594102, Volume 11, April 23, 2025, re-
7 porter pages 6 and 7. I attach those pages as Exhibit J-01. Hon. Garrett L. Wong stated: "neither
8 Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. They simply are
9 not permitted to consider that as evidence in the case, period." The statute I identify is Code of
10 Civil Procedure section 614 and Vehicle Code sections 22107 and 21804(a). Those are the duty
11 statutes the jury named. J-01 is context for the 2021 investigation of contact and of the driver's
12 duties.

13 **Exhibit J-02. CGC-25-631801 anti-SLAPP order**

14 I have read the order in CGC-25-631801, Document ID 10361462, dated / filed August 6, 2026,
15 Department 301 printed on the caption page. I attach the caption, holding, and grant pages as Ex-
16 hibit J-02. The order grants defendants' anti-SLAPP motion to strike and strikes the First Amended
17 Complaint in its entirety. The statute discussed is Code of Civil Procedure section 425.16 and Civil
18 Code section 47(b). Court immunity does not produce the claim file. Production remains under 10
19 CCR 2695.5(a).

20 **Exhibit J-03. CGC-25-631802 special motion to strike**

21 I have read the order in CGC-25-631802, Document ID 10297081, dated June 29, 2026, filed /
22 served July 1, 2026, Department 301 printed on the face. I attach the face and holding pages
23 as Exhibit J-03. The order grants CSAA Insurance Exchange's special motion to strike the First
24 Amended Complaint. The denial-letter investigation representation was treated as arising from
25 protected activity, including the pre-litigation denial letter. The statute discussed is Code of Civil
26 Procedure section 425.16 and Civil Code section 47(b). The administrative claim-file path remains

1 under 10 CCR 2695.5(a).

2 **CLOSING DECLARATION**

3 I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of Cal-
4 ifornia that the facts in this declaration are true of my own knowledge, except where I have said
5 they are the contents of a paper or transcript I have read; that those facts are true to the best of my
6 ability; and that they represent the actual state of this record as I know it.

7 Executed at Rohnert Park, California.

8 Dated: September 22, 2026

9 

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EXHIBIT D-01

I never left

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- **I never left**. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

EXHIBIT D-02

no impact, no anything

1 Q. Have you driven down Tehama since this
2 accident?

3 A. **No. I said that's bad luck.**

4 Q. It's human nature.

5 A. **Yep.**

6 Q. Okay. So do you know what part of the van
7 came into what part of the scooter or body of the -- of
8 the scooter rider?

9 A. **There's no part of my van, no impact, no**
10 **anything. Because it's -- what I telling you that --**
11 **the police officer, he check my van, completely. He**
12 **took some photos and everything. There is nothing**
13 **impact my van -- being touched.**

14 Q. After the impact occurred, did you move the
15 scooter?

16 A. **No. I don't touch the scooter. I don't touch**
17 **the guy.**

18 Q. When you called the police, what did you tell
19 them?

20 A. **I told them there's somebody laying on the**
21 **sidewalk and he's screaming and yelling. He thinks he**
22 **got hit and they say they come and running and I waited.**

23 Q. How did you get the information that he
24 thought he was hit?

25 A. **Because -- that's what you figure. Either he**

EXHIBIT D-03

called AAA the same day

1 me, What's wrong with you? You a little nervous? I
2 said, Well, something happened. And I told her what
3 happened and I called AAA right away to claim, in case
4 if something...

5 Q. Did you speak to anyone else -- aside from
6 your attorney or your wife -- about the collision?

7 A. Nothing.

8 Q. You gave a report to AAA, correct?

9 A. That's correct.

10 Q. Did you -- did you give a recorded statement
11 to AAA?

12 A. I guess, yes. I don't remember, but they --
13 they gave me a claim number from that. Somebody called
14 me back. And that day, I don't give no -- they have to
15 assign you to adjuster that day.

16 Q. Okay. And I won't ask you about your
17 conversations with the adjuster. I believe that
18 Mr. Chambers would consider that privileged information.

19 So I just want to look over my notes and make
20 sure that I've covered everything.

21 But on the date of this accident, you were not
22 using your vehicle to transport anything for work; is
23 that correct?

24 A. Yes.

25 Q. Okay. Did you always keep your vehicle

EXHIBIT D-04

Yes. That is my voice

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

1 Q. Okay. Mr. Abdelhalim, are you -- do you
2 typically lie, Mr. Abdelhalim?

3 MS. NAVARATNASINGHAM: Objection,
4 argumentative.

5 THE COURT: Sustained.

6 MR. ROSARIO: Q. Mr. Abdelhalim, were you
7 lying when you made the statement on the phone?

8 MS. NAVARATNASINGHAM: Objection,
9 argumentative.

10 THE COURT: Sustained.

11 MR. ROSARIO: Q. Mr. Abdelhalim, were you
12 being honest on the phone call?

13 MS. NAVARATNASINGHAM: The same objection.

14 THE COURT: Sustained.

15 MR. ROSARIO: Q. Mr. Abdelhalim, you made a
16 statement to us that you did not strike me, and on the
17 audio that we just played for you, about halfway down
18 the first page, it says: After the victim yelling at
19 me he hit me with his van.

20 Will you please look at the text there?

21 THE COURT: This is not evidence. It is the
22 recording you can rely on.

23 MR. ROSARIO: Q. Yeah. I am going to talk
24 about the recording. You clearly did on the audio,
25 and said: He was turning to the right and he was boom
26 in front of me, I just hit him, hit him with barely
27 anything.

28 Was that your voice also?

1 could explain to us why you would have said that you
2 had hit a pedestrian. You didn't know who I was. You
3 did not know my name.

4 Mr. Abdelhalim, you said you don't know why
5 you told the -- 911 that.

6 And Mr. Abdelhalim, is that -- are you -- did
7 you tell the police that you had hit the pedestrian?
8 Mr. Abdelhalim? Yes or no?

9 A. You were telling me -- you were yelling at
10 me, and you was making me confused and -- what I say
11 to the police, you scared me. I was trying to help
12 you. And you was yelling at me: You hit me, you hit
13 me, you hit me.

14 And I get confused. I get scared. I get --
15 I back up.

16 That is my explanation for this. I was
17 confused. I was scared.

18 When you call up, I didn't even know what is
19 left and right, and I say left and I told you right.

20 I was confused and I tried to help you and
21 you say: You hit me.

22 When I make the phone call, when I make the
23 phone call and they asked me "Did you hit him?"

24 I say what he say to me: He hit me; what he
25 say, what he said to me, I explained to the police.

26 He say: I hit him.

27 THE COURT: Mr. Abdelhalim, when you say, you
28 talked to "the police," are you talking about the 911

1 operator or the police officers at the intersection.

2 THE WITNESS: No. 911, sir.

3 THE COURT: Okay. So make it clear it is
4 911.

5 THE WITNESS: Yes, sir.

6 MR. ROSARIO: Q. Let's go ahead and clarify
7 that, Mr. Abdelhalim.

8 Do you have a recording of me telling you
9 that I was going to -- about any of those claims that
10 you said, that I said that you hit me or those things,
11 before you called the 911?

12 MS. NAVARATNASINGHAM: Objection, compound.

13 MR. ROSARIO: Q. Okay. Mr. Abdelhalim, do
14 you have any recording of me saying those things in
15 which you say you instigated -- you say I told you
16 those things.

17 So you repeated them to the 911 operator, is
18 that correct?

19 MS. NAVARATNASINGHAM: Are you saying aside
20 from the statements that are actually on that 911 call
21 where you are saying those statements?

22 MR. ROSARIO: Q. I am trying to understand
23 the reasoning why you said that to 911 -- I am trying
24 to understand what you were trying to imply.

25 Are you trying to say that it was that I said
26 that to you that you repeated it to the 911?

27 A. You was yelling at me and I tried to explain
28 to the police, I got scared. I was confused. I don't

1 even say -- I told the police: What is this? What is
2 it?

3 You say I hit you, and I told the police what
4 you say to the 911: I hit you.

5 And even -- like what I say before, that
6 time, I don't know left and right. And I say left,
7 and after that, I say right.

8 I was very confused and I was scared --
9 somebody like this, it is just waiting --

10 Q. So, Mr. Abdelhalim, why didn't you just
11 leave?

12 MS. NAVARATNASINGHAM: Objection, vague and
13 ambiguous.

14 THE COURT: Sustained. It is not relevant.

15 MR. ROSARIO: Q. Okay. Mr. Abdelhalim, was
16 it the first time that you talked to me or the second
17 time that you talked to me that you said that you
18 claimed I said that?

19 Can you give me the sequence of when I said
20 those things to you, at which time?

21 A. That time when I approach you and I told you:
22 Do you need any help?

23 You start yelling at me. You get me confused
24 what I say and I repeat on the phone call what you say
25 to me: I hit you. That is what I say I hit you to
26 the police, what you say to me. What you say to me, I
27 hit you. And I told them what you say to me I hit
28 you.

1 Q. So you just said that you repeated what I
2 said to the police?

3 A. Yes.

4 Q. Okay. I see what you are saying. So you are
5 not actually -- you didn't admit to the police. You
6 are just claiming that you repeated what I told you to
7 say to the police? That is what you are saying?

8 A. Repeat the question again, please.

9 Q. Are you saying that what you told the police,
10 I somehow convinced you to say to them?

11 A. Not convinced me. You scared me, and you
12 were yelling at me.

13 When I told you you needed help, you say to
14 me, you say: You hit me, you hit me.

15 Q. All right. I think we are about there on
16 that one.

17 Mr. Abdelhalim, so, like, I guess, you know,
18 talking about the collision and right before it, you
19 know -- right before the collision, how fast were you
20 going?

21 A. I am sorry. The question again, please?

22 Q. What was your speed right before the
23 collision?

24 A. The speed?

25 Q. Yeah.

26 A. Five mile an hour when I turned to the right.

27 Q. Okay. And how far from me -- well, right
28 after the collision, how far did you stop?

1 THE COURT: It is overruled.

2 You may answer, Mr. Abdelhalim.

3 THE WITNESS: The question again, please.

4 MR. ROSARIO: Q. The question is: Did your
5 story change from the 911 call to the record that you
6 gave to Officer Orenge? Yes or no?

7 A. Nothing changed.

8 Q. Mr. Abdelhalim, you verbalized in the 911
9 call that you hit the victim, correct?

10 A. No. I just explained to you when I approach
11 you, you were screaming and yelling. I got confused.
12 I got scared. I can say anything I want, say anything
13 that comes up in my mind like what I say.

14 I turn left and it was right. I put back
15 again, I say -- on the phone call I say what you say
16 to me: I hit you.

17 That is why I repeat to the 911 call what you
18 say to me: I hit you.

19 Q. Okay. Mr. Abdelhalim, I have another
20 question now on that.

21 Is that the same message that you gave to
22 Officer Orenge, the one that you put on the 911 call,
23 the same message that you provided to the 911
24 operator?

25 We know that -- you just explained that you
26 are confused and somehow, for some reason, you said
27 you hit me four times.

28 Now, when you talked to Officer Orenge, did

1 you also tell Mr. Orengo that you hit me?

2 MS. NAVARATNASINGHAM: Objection, Your Honor,
3 asked and answered. Also, it assumes facts not in
4 evidence if he knows who Officer Orengo is.

5 THE COURT: I will overrule it. I just want
6 to get through this one question and then we can move
7 on. All right.

8 You can answer the question, sir.

9 THE WITNESS: One more time.

10 THE COURT: Basically, he is asking: Did you
11 change your story when you talked to Officer Orengo?

12 THE WITNESS: No, sir.

13 MR. ROSARIO: Okay. It is time for me to
14 present the foundation, then, on this.

15 Mr. Abdelhalim, I am going to show you --

16 THE COURT: You can do that on a separate
17 occasion.

18 You have his statement. You can offer the
19 video recording or the audio recording at a different
20 occasion as a part of your case in chief in order to
21 impeach him.

22 MR. ROSARIO: Okay.

23 THE COURT: Your next question.

24 MR. ROSARIO: Q. Mr. Abdelhalim, would you
25 agree that striking a pedestrian carries serious
26 consequences; would you not?

27 MS. NAVARATNASINGHAM: Objection,
28 argumentative, relevance.

EXHIBIT C-01

February 25, 2021 denial letter



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117808 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086



EXHIBIT C-02

Metropolitan Reporting Bureau order



Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT C-03

SFPD Report No. 210079556

SPECIAL CONDITIONS		NUMBER INJURED	MT & BLN FOLLOV	CITY	JUDICIAL DISTRICT	LOCAL REPORT NUMBER	
		1	☐	San Francisco	SF Superior Court	210079556	
		NUMBER KILLED	MT & BLN INTERSECTION	COUNTY	REPORTING DISTRICT	BEAT	DAY OF WEEK
		0	☐	San Francisco	Southern	3B13C	8 M T W T F S
							☐ YES ☒ NO
LOCATION	COLLISION OCCURRED ON			MO. DAY YEAR	TIME (HRS)	NO. 8	OFFICER I.D.
	05TH ST			02/04/2021	1500	3801	#1118
	MILEPOST INFORMATION			GPS COORDINATES		COMPUTER AIDED DISPATCH NUMBER (CAD)	
	FEET/MILES OF			LATITUDE		LONGITUDE	
☒ AT INTERSECTION WITH	TEHAMA ST			STATE HWY REL.		PHOTOGRAPHS BY:	
	☐ OR: FEET/MILES OF			☐ YES ☒ NO		#1118	
PARTY 1	DRIVER'S LICENSE NUMBER		STATE	CLASS	AIR BAG	SAFETY EQUIP.	VEH. YEAR
	F1458859		CA	C	P	A	
DRIVER	NAME (FIRST, MIDDLE, LAST)			MAKE/MODEL/COLOR		LICENSE NUMBER	
	☒ FRANCISCUS Dylan Rosario			Lime/Scooter/Green		N/A	
PED-TRAIL	STREET ADDRESS			OWNER'S NAME		☐ SAME AS DRIVER	
	835 Terry Francois Blvd			Lime Scooter			
PARKED VEHICLE	CITY/STATE/ZIP			OWNER'S ADDRESS		☐ SAME AS DRIVER	
	San Francisco/CA/94158			85 Second Street, SF, CA			
BICY-CLIST	SEX	HAIR	EYES	HEIGHT	WEIGHT	Mo. BIRTHDATE Day Year	RACE
	M	BLK	BLK	5'7"	185	06/06/1976	A
OTHER	HOME PHONE		BUSINESS PHONE		DISABILITY		VEHICLE IDENTIFICATION NUMBER
	650-488-7510				1		N/A
	INSURANCE CARRIER		POLICY NUMBER		AUTONOMOUS		VEHICLE TYPE
	N/A				1		DESCRIBE VEHICLE DAMAGE
	DIR OF TRAVEL	ON STREET OR HIGHWAY		SPEED LIMIT		DOT	
	N	05TH ST		25			
PARTY 2	DRIVER'S LICENSE NUMBER		STATE	CLASS	AIR BAG	SAFETY EQUIP.	VEH. YEAR
	C0470213		CA	C	M	G	2018
DRIVER	NAME (FIRST, MIDDLE, LAST)			MAKE/MODEL/COLOR		LICENSE NUMBER	
	☒ Subhi Abdelhalim			Ford/Transit 250/White		53057T2	
PED-TRAIL	STREET ADDRESS			OWNER'S NAME		☒ SAME AS DRIVER	
	180 Allen Dr			OWNER'S ADDRESS		☒ SAME AS DRIVER	
PARKED VEHICLE	CITY/STATE/ZIP			DISPOSITION OF VEHICLE ON ORDERS OF:		☐ OFFICER ☒ DRIVER ☐ OTHER	
	San Bruno/CA/94066			Driven away by P2			
BICY-CLIST	SEX	HAIR	EYES	HEIGHT	WEIGHT	Mo. BIRTHDATE Day Year	RACE
	M	BRN	BRN	5'7"	145	07/19/1955	O
OTHER	HOME PHONE		BUSINESS PHONE		DISABILITY		VEHICLE IDENTIFICATION NUMBER
	415-596-9829				1		IFTYRIYM2JKA58767
	INSURANCE CARRIER		POLICY NUMBER		AUTONOMOUS		VEHICLE TYPE
	AAA		CAAS100310857		1		DESCRIBE VEHICLE DAMAGE
	DIR OF TRAVEL	ON STREET OR HIGHWAY		SPEED LIMIT		DOT	
	W	TEHAMA ST.		25			
PARTY 3	DRIVER'S LICENSE NUMBER		STATE	CLASS	AIR BAG	SAFETY EQUIP.	VEH. YEAR
DRIVER	NAME (FIRST, MIDDLE, LAST)			MAKE/MODEL/COLOR		LICENSE NUMBER	
PED-TRAIL	STREET ADDRESS			OWNER'S NAME		☐ SAME AS DRIVER	
				OWNER'S ADDRESS		☐ SAME AS DRIVER	
PARKED VEHICLE	CITY/STATE/ZIP			DISPOSITION OF VEHICLE ON ORDERS OF:		☐ OFFICER ☐ DRIVER ☐ OTHER	
BICY-CLIST	SEX	HAIR	EYES	HEIGHT	WEIGHT	Mo. BIRTHDATE Day Year	RACE
OTHER	HOME PHONE		BUSINESS PHONE		DISABILITY		VEHICLE IDENTIFICATION NUMBER
	INSURANCE CARRIER		POLICY NUMBER		AUTONOMOUS		VEHICLE TYPE
							DESCRIBE VEHICLE DAMAGE
	DIR OF TRAVEL	ON STREET OR HIGHWAY		SPEED LIMIT		DOT	
PREPARED BY NAME		I.D. NUMBER		DISPATCH NOTIFIED		REVIEWER'S NAME	
Fernandez		1118		☒ YES ☐ NO ☐ N/A		DATE REVIEWED	

STATE OF CALIFORNIA
NARRATIVE/SUPPLEMENTAL

CHP 556 (Rev. 7-90) OPI 085

Page 5 of 7

DATE OF INCIDENT/OCCURRENCE 02/04/21	TIME (2400) 1500	NCIC NUMBER 3801	OFFICER I.D. NUMBER #1118	NUMBER 210079556
☒ *X ONE ☒ Narrative ☐ Supplemental		☒ *X ONE ☒ Collision Report ☐ Other:		
TYPE SUPPLEMENTAL (*X APPLICABLE) ☐ BA Update ☐ Fatal ☐ Hit and Run Update ☐ Hazardous Materials ☐ School Bus ☐ Other:				
CITY/COUNTY/JUDICIAL DISTRICT City and County of San Francisco/SF Superior Court				REPORTING DISTRICT/BEAT Southern/3B13C
LOCATION/SUBJECT 05TH ST at TEHAMA ST				STATE HIGHWAY RELATED ☐ Yes ☒ No

1. _____
2. NOTIFICATION: _____
3. _____
4. On 02/04/21 at approximately 1503 hours, Officer Orango #1931 and I were in a marked patrol vehicle in full duty uniform
5. when we were dispatched to a call of a vehicle collision with injury. We were dispatched to 5th Street and Tehama Street. All
6. times and measurements are approximate. Measurements were taken by pacing unless otherwise stated.
7. _____
8. SCENE: _____
9. _____
10. 5th Street is a four lane, north and south roadway with two lanes traveling northbound and two lanes traveling southbound.
11. 5th Street is composed primarily of asphalt. Tehama Street is a one lane roadway traveling westbound. Tehama Street is
12. composed primarily of asphalt. At the time of this collision the roadway was dry. All roadway markings were in good
13. condition and no visual obstructions were noted or claimed.
14. _____
15. PARTIES: _____
16. _____
17. PARTY #1 (Franciscus Rosario): P1 was located on scene. P1 was determined to be the driver of V1 at the time of this
18. collision by statements provided from involved parties. P1 was positively identified by his CA Driver's License (#F1458859).
19. P1 had a complaint of pain to the left side of his rib-cage and the left side of his lower back.
20. _____
21. PARTY #2 (Subhi Abdelhalem): P2 was located on scene. P2 was determined to be the driver of V2 at the time of this
22. collision by statements provided from involved parties. P2 did not sustain any injuries. P2 was positively identified by his CA
23. Driver's License (#S0410213).
24. _____
25. VEHICLES: _____
26. _____
27. VEHICLE #1 (Lime Scooter) V1 was on scene at the time of our arrival. V1 did not sustain any damage from this incident.
28. _____
29. VEHICLE #2 (White Ford Transit Van) V2 was on scene at the time of our arrival. V2 did not sustain any damage from this
30. incident.
31. _____

PREPARER'S NAME and I.D. NUMBER Fernandez #1118	DATE 02/04/2021	REVIEWER'S NAME	DATE
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Report

DATE OF INCIDENT/OCCURRENCE 02/04/21	TIME (2400) 1500	NCIC NUMBER 3801	OFFICER I.D. NUMBER #1118	NUMBER 210079556
☒ ONE ☒ Narrative ☐ Supplemental		☒ ONE ☒ Collision Report ☐ Other:		TYPE SUPPLEMENTAL (* APPLICABLE) ☐ BA Update ☐ Fatal ☐ Hit and Run Update ☐ Hazardous Materials ☐ School Bus ☐ Other:
CITY/COUNTY/JUDICIAL DISTRICT City and County of San Francisco/SF Superior Court				REPORTING DISTRICT/BEAT Southern/3B13C
LOCATION/SUBJECT 05TH ST at TEHAMA ST				CITATION NUMBER STATE HIGHWAY RELATED ☐ Yes ☒ No

1. OTHER FACTUAL INFORMATION:

2. Both V1 and V2 were moved prior our to arrival. SFFD Medic 61 arrived on scene and treated P1 on scene and P1 refused transport.

6. STATEMENTS:

8. P1: P1 stated he was riding V1 northbound on Fifth Street in the number one lane approaching Tehama Street. P1 was riding in the bicycle lane against the flow of traffic. P1 observed V2 approaching his vehicle and V2 attempted to turn westbound on Tehama Street from Fifth Street. P1 attempted to slow down to avoid the collision. The front of V1 collided with the left side of V2. P1 was traveling approximately 5 MPH prior to the collision. P1 was ejected from V1. P1 did not lose consciousness during this incident.

14. P2: P2 stated he was driving V2 southbound on Fifth Street in the number two lane from Howard Street. P2 was approaching Tehama Street and began to turn westbound on Tehama Street. P2 looked at his side-view mirror to clear the bike lane. P2 completed the turn on Tehama Street and P2 did not feel any impact but instead heard P1 screaming. P2 did not see P1 or V1 prior to the collision. P2 was traveling approximately 5 MPH prior to the collision. P2 exited his vehicle to check on P1 and called the police. V2 did not sustain any damage and P2 did not sustain any injuries.

20. EVIDENCE:

22. I took photographs of the scene and vehicles involved. Officer Martinez #1602 took photographs of P1 and the scene. Officer Orengo #1931 uploaded all photographs onto a CD and booked the CD into evidence at Southern Station.

25. I canvassed the area for additional witnesses and cameras with negative results.

27. SUMMARY:

29. On 02/04/21 at approximately 1500 hours, P1 was riding V1 traveling northbound on Fifth Street against the flow of traffic in the bicycle lane. P2 made a right-hand turn from Fifth Street onto Tehama Street. V1 and V2 collided at the intersection of Fifth/Tehama Street. P1 caused the collision by riding V1 against the flow of traffic.

PREPARER'S NAME and I.D. NUMBER Fernandez #1118	DATE 02/04/2021	REVIEWER'S NAME	DATE
--	--------------------	-----------------	------

EXHIBIT P-01

reviewed the available evidence

1 trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of
2 judgments and avoiding an unending roundelay of litigation, an evil far worse than an
occasional unfair result.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322.)

3 Here, CSAA reviewed the available evidence, including the statements of its Insured, and reached
4 a prompt denial position. This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty
5 to promptly investigate Plaintiff’s then-pending claim, as codified in Insurance Code § 790.03 and 10 Cal.
6 Code Regs. § 2695.7, the latter of which provides: “Upon receiving proof of claim, every insurer[] ...
7 shall immediately, but in no event more than forty (40) calendar days later, accept or deny the claim, in
8 whole or in part.” This is precisely what CSAA did: comply with its statutory duty and issue a denial letter
9 with an understanding that “litigation [was] imminent” unless Plaintiff’s claim was accepted. (*Aronson*,
10 *supra*, 58 Cal.App.4th at 271.) This is a protected pre-litigation statement, protected by the Anti-SLAPP
11 statute.

12 **2. The FAC’s Claim that CSAA’s Denial Letter “Was Materially False” Because CSAA**
13 **“had not Obtained or Reviewed ... Objective Liability Evidence for the Incident” Again**
14 **Targets Protected Conduct (FAC ¶ 4)**

15 The same analysis above applies here to the alleged *falsity* of CSAA’s Denial Letter. This
16 allegation remains focused on protected conduct.

17 “The privilege extends beyond statements made in the proceedings, and includes statements made
18 to initiate official action.” (*Kashian, supra*, 98 Cal.App.4th at 913.) (*See Cabral v. Martins* (1999) 177
19 Cal.App.4th 471, 482 (“Case law establishes that communications that are intimately intertwined with,
20 and preparatory to, the filing of judicial proceedings qualify as petitioning activity for the purpose of the
21 anti-SLAPP statute.”) And “[a]ny doubt about whether the privilege applies is resolved in favor of
22 applying it.” (*Adams v. Superior Court* (1992) 2 Cal.App.4th 521, 529.) Furthermore, “communications
23 made in connection with litigation do not necessarily fall outside the privilege simply because they are, or
are alleged to be, fraudulent, perjurious, unethical, or even illegal.” (*Ibid.* at 920.)

24 CSAA’s issuing of a liability denial letter is a statutory and regulatory requirement in the context
25 of a submitted claim and pending litigation. The FAC alleges that CSAA’s denial letter was “materially
26 false,” or put simply: incorrect. It is not clear if the FAC intends to allege that, either i) the denial letter
27 was false insofar as CSAA had not actually closed its investigation into liability; or ii) the denial letter
28 was false insofar as CSAA should have reached a different conclusion and accepted the claim. Either way,

EXHIBIT P-02

denial letter protected even if false or fraudulent

1 it is immaterial how Plaintiff thinks the denial letter was “false.” The issuance of that denial letter—be it
2 false, negligently issued, fraudulent, or otherwise—is protected conduct and subject to the Anti-SLAPP
3 statute’s protections. This is especially so as CSAA knew that this denial was likely “to initiate official
4 action” on Plaintiff’s part in filing his lawsuit. (*Kashian, supra*, 98 Cal.App.4th at 913.)

5 **3. Plaintiff’s Claim that “CSAA Funded and Directed the Defense” and Made “False and**
6 **Misleading Representations” to the Court While Maintaining its “Litigation-Stage**
7 **Denial Posture” Targets Protected Conduct (FAC ¶ 22F)**

8 These allegations now reach directly into the courtroom and allege that statements made by
9 CSAA—by and through its insurance defense counsel—are somehow actionable. They are not. Plaintiff’s
10 FAC alleges that the activities of CSAA—by and through its retained defense counsels—were “false or
11 misleading” to the Court. (FAC ¶ 22F). This is incontrovertibly protected conduct under the Anti-SLAPP
12 statute’s protection.

13 Statements and actions defending a client or insured are protected activity under California’s Anti-
14 SLAPP statute. (*See City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 767 (concluding that an
15 allegation that a defendant engaged in unlawful, unfair, and fraudulent business acts and practices “by
16 filing motions or pleadings [in] court” and “by filing a civil lawsuit” squarely concerned protected activity
17 under the Anti-SLAPP statute and was subject to dismissal). Anti-SLAPP protection also, necessarily,
18 applies to “making representations to [a] court, or preparing documents for filing in court.” (*Graham-Sult*
19 *v. Clainos* (9th Cir. 2014) 756 F.3d 724, 736.) (*See, also, Dove Audio, Inc. v. Rosenfeld, Meyer & Susman*
20 (1996) 47 Cal.App.4th 777, 784 (“Just as communications preparatory to or in anticipation of the bringing
21 of an action or other official proceeding are within the protection of the litigation privilege of Civil Code
22 [§ 47(b)], we hold that such statements are equally entitled to the benefits of section 425.16.”) Further,
23 “a complaint [need not] be drafted before the privilege will apply.” (*Aronson, supra*, 58 Cal.App.4th at
24 268.)

25 CSAA, by and through its retained insurance defense counsel, simply defended Insured at trial and
26 disputed the relevance of the cited “objective liability evidence.” (FAC ¶ 4). CSAA, through its retained
27 counsels, maintained through jury trial the original “liability-claim denial” posture, as articulated in
28 CSAA’s initial denial letter. (*Id.* at 1.) Admittedly, the FAC is not clear on exactly *how* “CSAA-funded
counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading

EXHIBIT P-03

demurrer litigation privilege

1 Defendants CSAA INSURANCE EXCHANGE (“CSAA” or “Defendant”) submits the
2 following Memorandum of Points and Authorities in Support of its Demurrer to Plaintiff
3 FRANCISCUS DYLAN ROSARIO’s (“Plaintiff”) First Amended Complaint (“FAC”). (See RFJN
4 Ex. A, *Plaintiff’s FAC*).

5 I. INTRODUCTION

6 Plaintiff’s First Amended Complaint (“FAC”) is an improper collateral attack on a valid jury
7 verdict and judgment entered by this Court following a full and fair trial in April 2025. Plaintiff’s
8 underlying case was a personal injury case where the jury returned a defense verdict on liability.
9 Rather than pursue relief through the appellate process—which Plaintiff has in fact already
10 initiated—Plaintiff attempts to relitigate issues previously raised, litigated, and rejected by the jury
11 and the Court. Plaintiff now targets the original defendant’s insurance carrier, CSAA—in its own
12 capacity and for the acts of insurance defense counsels—for all their combined litigation conduct in
13 denying liability and proceeding to defeat Plaintiff’s personal injury lawsuit at trial.

14 The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative
15 theory that the entire defense team lied to this Court about evidence that was actually presented at
16 trial, but which Plaintiff was unable to use effectively before the jury. In short, the jury considered
17 the evidence but disagreed with Plaintiff on its importance. A good faith dispute over liability cannot
18 justify initiating a subsequent action targeting the defense for its litigation posture and conduct.
19 Setting aside the plethora of factual errors, Plaintiff’s FAC, on its face, is subject to demurrer
20 because Plaintiff’s claims, even if true, cannot obtain the requested relief.

21 Plaintiff’s entire FAC is subject to demurrer without leave to amend.

22 II. SUMMARY OF ARGUMENT

23 Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and
24 this Court’s valid judgment—while his appeal on the underlying case remains pending. The FAC
25 focuses on Defendant’s litigation conduct—in its own capacity, and by and through its counsels—
26 resulting in a defense verdict. Plaintiff’s factual allegations target conduct that is squarely protected
27 under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendant’s pre-trial
28 ///

1 investigation and litigation conduct. Therefore, Defendant has concurrently filed a Special Motion
2 to Strike under Code Civ. Proc. § 425.16.

3 Neither Plaintiff's *First Cause of Action for Fraud and Deceit*, nor his *Second Cause of*
4 *Action for Violation of Business and Professions Code § 17200 (UCL)* can survive demurrer.

5 First, the Court does not have jurisdiction to hear what is, in fact, an appeal of this Court's
6 prior jury verdict and final judgment. Second, Plaintiff's entire theory is, in reality, an improper
7 collateral attack on a prior valid judgment.¹ Third, Plaintiff's other pending actions—including,
8 crucially, his pending appeal—related to this same underlying case bar the present lawsuit.²

9 Fourth, Plaintiff does not have standing against CSAA *third party's* insurance carrier. Fifth,
10 Plaintiff cannot state facts sufficient to constitute a viable cause of action against Defendant. Sixth,
11 certain of Plaintiff's factual allegations are barred by the pertinent statute of limitations. Seventh,
12 all activity alleged in the FAC improperly targets Defendant's protected litigation conduct under
13 Civil Code § 47(b). And finally, eighth, the entire FAC is uncertain and legally unsupportable.

14 Therefore, the FAC is subject to demurrer without leave to amend.

15 **III. STATEMENT OF THE FACTS**

16 **A. The Parties**

17 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

18 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for
19 SUBHI ABDELHALIM ("Insured") during the underlying trial. Plaintiff now sues CSAA directly.

20 **B. Factual and Procedural Background**

21 Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original
22 defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance
23 carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of
24 ABDELHALIM's policy of insurance. This demurrer is filed on behalf of CSAA. (*See* RFJN **Ex. C**,
25 *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and

26 ¹ Plaintiff's original Complaint in this action explicitly represented to the Court that "*Plaintiff does not seek reversal*
27 *or modification of any judgment in the Underlying Action.*" (*See* RFJN **Ex. T**, *Plaintiff's Original Complaint* ¶ 31)
(*emphasis added*); (*but see* RFJN **Ex. B**, *Plaintiff's FAC in Related Case*) (seeking to "set aside judgment").

28 ² (*See Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (*see also* RFJN **Ex. Q**, *Plf's Notice of*
Appeal; RFJN **Ex. R**, *Plf's Notice of Designating Record on Appeal*).

1 Second, CSAA had no “intent to deceive.” On the contrary, CSAA’s intent in issuing the
2 denial letter was to apprise Plaintiff of a true fact: *CSAA was denying the claim for lack of liability*
3 *on the part of its Insured*. This was a disputed claim. Were courts to treat a disputed claim for lack
4 of liability as *fraud*, such a policy would lead to cascading and unending litigation—an absurd result.

5 Third, Plaintiff had no *reliance* on CSAA’s denial posture—maintained in denial letters and
6 in Court. On the contrary, Plaintiff returned CSAA’s denial with disagreement and a lawsuit.

7 Fourth, and finally, Plaintiff has no cognizable damage. All Plaintiff’s cited damages are
8 related to his “forced third party litigation and ...attorney-fee damages.” (*FAC* p. 9.) This is not an
9 item of damage as it is precluded by the Economic Loss Rule. This flies in the face of the American
10 Rule, where each side bears its own attorneys’ fees, at trial. All Plaintiff’s other cited damages fare
11 no better as they are merely an attempt to repackage his underlying “bodily injury liability claim,”
12 as a fraud case. (*FAC* ¶ 33.)

13 **ii. The FAC fails to State a Claim for Violation of the UCL.**

14 For the same reasons discussed above, Plaintiff cannot prevail on his UCL claim. As a
15 threshold matter, there was nothing fraudulent or false about CSAA’s claim denial in February
16 2021—the claim was, as CSAA stated, denied. That was a true fact when stated. Neither can there
17 be any unfairness to that claim denial as the jury agreed and rendered a defense verdict on that same
18 claim. Finally, to the extent Plaintiff’s FAC alleges that CSAA made “in court” ... “false and
19 misleading representations” regarding the “foundational objective evidence,” this, again is barred
20 by the **litigation privilege** and cannot constitute a claim under the UCL.

21 A “plaintiff may not use the UCL to ‘plead around’ an *absolute* bar to relief” *Zhang v.*
22 *Superior Court* (2013) 57 Cal.4th 364, 369; (see also *Moradi-Shalal v. Fireman’s Fund Ins.*
23 *Companies* (1988) 46 Cal.3d 287, 306 (“[N]o enforceable claim accrues against the insurer until the
24 insured’s liability is in fact established.”) Indeed, “[t]he *Moradi-Shalal* court made it plain that ...
25 violations of [Ins. Code] section 790.03(h) are themselves not actionable.” *Zhang, supra*, 57 Cal.4th
26 at 369.

27 The language of Business and Professions code § 17200 states that “unfair competition shall
28 mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive,

1 **B. The FAC Targets Protected Litigation Conduct under Civ. Code § 47(b)³**

2 The entire factual basis contained in the FAC targets privileged conduct and communications
3 under Civ. Code § 47(b), which provides in relevant part:

4 A privileged publication or broadcast is one made...(b) In any (1) legislative
5 proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized
6 by law, or (4) in the initiation or course of any other proceeding authorized by law
and reviewable pursuant to Chapter 2...

7 The entire FAC arises entirely from the privileged litigation conduct of Defendant in the
8 course of defending the third-party Insured against Plaintiff's prior lawsuit. No amendment could
9 possibly transform any of the alleged conduct into non-privileged activity, the litigation privilege
10 presents an incurable legal bar.

11 Defendants concurrently seek relief under Code of Civil Procedure section 425.16. While
12 the demurrer independently disposes of the FAC as a matter of law, the Anti-SLAPP motion
13 provides an alternative and independent basis for dismissal and recovery of fees.

14 The demurrer should therefore be sustained **without leave to amend.**

15 **C. Collateral Estoppel**

16 Plaintiff is estopped from attempting this end-around of this Court's underlying jury verdict
17 and entry of judgment.

18 "A collateral attack is an attempt to avoid the effect of a judgment or order made in some
19 other proceeding." *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
20 *Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) "An attack in a second action on an earlier
21 judgment is collateral." (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) "A
22 judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment
23 is void on the face of the record." (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, "collateral
24 estoppel precludes relitigation of issues argued and decided in prior proceedings." (*Singh v.*
25 *Lipworth* (2014) 227 Cal.App.4th 813, 826.)

26 ///

27 ///

28

³ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

EXHIBIT P-04

performed an investigation

1 **2. Plaintiff's Claim for Punitive Damages is Subject to Strike Because the FAC**
2 **Cannot Allege Malice.**

3 “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or
4 despicable conduct which is carried on by the defendant with a willful and conscious disregard of the
5 rights or safety of others.” (Civ. Code, § 3294 (c)(1).) “Despicable conduct” has been defined as conduct
6 that is “so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent
7 people.” (*McNeal v. Whittaker, Clark & Daniels, Inc.* (2022) 80 Cal.App.5th 841, 866.)

8 At most, the FAC alleges that Defendant engaged in wrongful conduct by i) denying a claim; and
9 ii) funding a successful defense of that claim. (*FAC* ¶¶ 2, 3, 4, 16, 17, 21A.) Such allegations, even if
10 accepted as true, cannot be described as being “... so vile, base, contemptible, miserable, wretched or
11 loathsome that it would be looked down upon and despised by ordinary decent people.” (*American*
12 *Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.) Plaintiff's
13 FAC cannot possibly support even an inference of malice. CSAA performed an investigation, determined
14 that its insured was not liable, and informed Plaintiff of their decision. The same facts were presented to
15 a jury, and the jury agreed with CSAA's denial position, rendering a “9-3 defense verdict in the Underlying
16 Action.” (*FAC* ¶ 25A.) This is routine practice in the insurance industry, and the objective facts as
17 presented by Plaintiff do not show conduct which was “intended by the defendant to cause injury to the
18 plaintiff or despicable conduct...carried on by the defendant with a willful and conscious disregard of the
19 rights or safety of others.” (Civ. Code § 3294 (c)(1).)

20 Therefore, CSAA's denial of Plaintiff's initial demand does not constitute malice, as required by
21 California law to support his demand for punitive damages.

22 **3. Plaintiff's Claim for Punitive Damages is Subject to Strike Because The FAC**
23 **Cannot Plead Fraud.**

24 “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.”
25 (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) When the defendant is a corporate entity, the
26 pleading standard is even higher, the Plaintiff must plead, with particularity, facts to “to show how, when,
27 where, to whom, and by what means the representations were tendered.” (*Ibid.*)

28 The FAC fails to allege facts sufficient to state a claim for fraud. In the absence of a properly

1 pleaded fraud claim, Plaintiff's demand for punitive damages in the FAC is irrelevant in improper.
2 Because the FAC has not sufficiently pled malice, fraud, or oppression, the Court should find the portions
3 of the FAC seeking punitive damages to be irrelevant and improper and strike those portions pursuant to
4 Code Civ. Proc. § 436.

5 **C. THERE IS NO BASIS FOR PLAINTIFF'S CLAIMS FOR VARIOUS COSTS,**
6 **COMPENSATORY DAMAGES, INJUNCTIVE RELIEF, OR FUTURE DAMAGES**

7 The entire factual basis contained in the FAC targets privileged conduct and communications
8 under Civ. Code § 47(b). Further, Plaintiff lacks standing to sue CSAA for the claims herein, including
9 the claim for all his alleged compensatory damages.

10 **1. The Absolute Litigation Privilege Bars the FAC's Claim for Compensatory**
11 **Damages**

12 Civ. Code § 47(b) provides in relevant part:

13 A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding,
14 (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the
15 initiation or course of any other proceeding authorized by law and reviewable pursuant to
Chapter 2...

16 "The only exception to the application of section 47(2) to tort suits has been for malicious
17 prosecution actions." (*Ribas v. Clark* (1985) 38 Cal. 3d 355, 364.) The privilege also "poses a clear bar to
18 [an] action insofar as it is based on . . . the tort of intentional infliction of emotional distress." (*Ribas v.*
19 *Clark* (1985) 38 Cal.3d 355, 364.)

20 Here, all the conduct alleged in Plaintiff's FAC arises from statements, filings, or other
21 communicative acts undertaken in connection with prior judicial proceedings. As such, those allegations
22 fall squarely within the scope of the litigation privilege and cannot support a claim for emotional distress
23 damages as a matter of law.

24 Plaintiff has not alleged in the FAC any cause of action for malicious prosecution, nor could he do
25 so under these circumstances and facts alleged. On the contrary, Plaintiff is the party who initiated and
26 pursued the underlying litigation. Accordingly, the sole exception to the litigation privilege (malicious
27 prosecution) is inapplicable here. Accordingly, all portions of Plaintiff's FAC related to emotional distress
28 damages should be stricken pursuant to Code Civ. Proc. § 436.

EXHIBIT P-05

protected conduct / litigation privilege

I. INTRODUCTION

Plaintiff's Amended Complaint ("FAC") constitutes an impermissible collateral attack on a final judgment entered after a full jury trial and extensive pre- and post-trial proceedings. In the underlying action, a jury returned a defense verdict on liability following the presentation of all evidence Plaintiff claims was "wrongfully obstructed." The Court thereafter denied Plaintiff's multiple post-trial motions challenging the verdict and judgment. Plaintiff has since filed a notice of appeal, which remains pending.¹

Rather than awaiting appellate review, Plaintiff now asserts a single equitable claim styled as an "Independent Action to Set Aside Judgment for Extrinsic Fraud," naming not only the original defendant but also the insurance carrier and all underlying defense attorneys for their "conduct" in obtaining a defense verdict. **The FAC seeks to impose liability based entirely on Defendants' litigation conduct in defending the underlying case—including discovery practices, motions in limine, and representations to the Court.** These allegations do not state a cognizable claim as a matter of law and instead fall squarely within the scope of conduct protected by California's Anti-SLAPP statute and the absolute **litigation privilege**.

California courts have long recognized that subsequent lawsuits premised on a party's or counsel's participation in judicial proceedings—whether during discovery, motion practice, or trial—are barred as a matter of law. (Code Civ. Proc. § 425.16, subd. (e); Civ. Code § 47(b).) Representing a client in litigation, filing and opposing motions, managing discovery, and making arguments regarding the admissibility or weight of evidence are the epitome of protected petitioning activity. Mere disagreement with the jury's assessment of evidence, or with the Court's discretionary rulings, does not constitute extrinsic fraud and cannot justify setting aside a judgment. At most, Plaintiff alleges matters that were *intrinsic* to the underlying case insofar as they were all raised, litigated, and resolved in the underlying action—precisely the type of claims that are barred as a matter of law and must be addressed, if at all, through appellate review.

Accordingly, the FAC is subject to a special motion to strike under Code of Civil Procedure section 425.16 because (1) each allegation targets protected litigation conduct, and (2) Plaintiff cannot establish a probability of prevailing on the merits of his sole cause of action. **The absolute litigation privilege**

¹ See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal.

1 independently bars Plaintiff's claim, and his equitable theory fails because no extrinsic fraud is
2 alleged or plausibly established.

3 For these reasons, the Court should strike the FAC in its entirety without leave to amend and award
4 Defendants their mandatory attorneys' fees and costs incurred in bringing this Special Motion to Strike.

5 II. SUMMARY OF ARGUMENT

6 Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and this
7 Court's valid judgment. In ostensible support of this effort, Plaintiff complains of Defendants' collective
8 litigation activity resulting in a defense verdict. All the alleged conduct is protected under Civil Code §
9 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendants' pre-trial discovery and litigation conduct.

10 Plaintiff's FAC must be stricken, in its entirety as both prongs of the Anti-SLAPP analysis are
11 satisfied. First, under prong one: The FAC's factual allegations arise entirely from Defendants' protected
12 litigation conduct: pre-trial discovery, motions in limine, and communications with the Court.

13 Second, under prong two: Plaintiff cannot possibly meet his burden of offering admissible
14 evidence establishing he has a probability of success on his cause of action. This is the case for several
15 reasons including: i) all alleged activity is **protected conduct** under Civil Code § 47(b); ii) Plaintiff's entire
16 theory is, in reality, a legally untenable collateral attack on a prior valid judgment;² and iii) Plaintiff cannot
17 establish "extrinsic fraud." Therefore, the action should be dismissed.

18 III. STATEMENT OF THE FACTS

19 A. THE PARTIES

20 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

21 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for SUBHI
22 ABDELHALIM ("Insured") during the underlying trial.

23 Defendant CARBONE, SMITH & KOYAMA ("CARBONE") was the initially retained defense
24 counsel in Plaintiff's underlying litigation.

25 MICHAEL R. CHAMBERS ("CHAMBERS") was the handling defense attorney at CARBONE,
26 pre-trial. CARBONE and CHAMBERS substituted out of the case, prior to Plaintiff's jury trial on the
27 underlying litigation. (See RFJN **Ex. D**, *Substitution of Defense Counsel*).

28 ² Plaintiff's original Complaint in the related action against CSAA explicitly represented to the Court that "*Plaintiff does not seek reversal or modification of any judgment in the Underlying Action.*" (See RFJN **Ex. T**, *Plaintiff's Original Complaint in related Action* ¶ 31) (*emphasis added*); (*but see* RFJN **Ex. A**, *Plaintiff's FAC*) (seeking to "set aside judgment").

1 The allegations against CARBONE and CHAMBERS are identical, with only slight verbiage
2 changes. Hence, for brevity, those allegations against them are summarized jointly, below:

- 3 1. CARBONE and CHAMBERS “had possession of the defense file when the 911 audio, body-
4 worn camera footage, and CAD materials were served on defense counsel during discovery.”
(FAC p. 6:13-14).
- 5 2. On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA
6 pursuant to the Substitution of Attorney ... without ensuring proper documentation and
conveyance of the production history to successor counsel. (FAC p. 6:15-18).
- 7 3. This failure enabled [PSA] to make false and misleading representations to the Court that the
8 materials were “news to me” and had not been received until the eve of trial, when in fact the
defense had possessed them during Defendant CHAMBERS’ tenure. (FAC p. 6:18-21).
- 9 4. Defendant CHAMBERS’ [and CARBONE’s] conduct constituted fraud on the court and was a
proximate cause of the process corruption that procured the judgment. (FAC p. 6:21-22).

10 **IV. LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16**

11 The Legislature passed Code of Civil Procedure (“Code Civ. Proc.”) § 425.16 to protect against
12 strategic lawsuits used to attack individuals who exercise their rights under the First Amendment—
13 including affording protection for litigation activity. The Legislature adopted Code Civ. Proc. § 425.16 in
14 response to the disturbing increase in litigation “brought primarily to chill the valid exercise of the
15 constitutional rights of freedom of speech and petition.” Commonly referred to as the Anti-SLAPP Statute,
16 it “provides for the early dismissal of unmeritorious claims filed to interfere with the valid exercise of the
17 constitutional rights of freedom of speech and petition for the redress of grievances.” (*Club Members v.*
18 *Sierra Club* (2008) 45 Cal.4th 309, 312.) The Legislature has declared that the statute must be “construed
19 broadly” to that end. (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1165.)

20 In application, the Motion involves a two-step process. Defendants must first make a prima facie
21 showing that the plaintiff’s claim arises from protected activity. (*City of Cotati v. Cashman* (2002) 29
22 Cal.4th 69, 76.) The burden then shifts to plaintiff to prove a probability of prevailing on the merits of the
23 claim. If plaintiff cannot meet that burden, the claim must be dismissed. (*Ibid.*)

24 **A. STEP ONE IS MET: PLAINTIFF’S CLAIM AGAINST DEFENDANTS ARISES OUT** 25 **OF PROTECTED ACTIVITY UNDER CODE CIV. PROC. § 425.16 AND CIVIL** 26 **CODE § 47(B)**

27 The FAC squarely targets Defendants’ protected activity under the litigation privilege set forth in
Civil Code § 47(b), which provides in relevant part:

28 ///

1 A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding,
2 (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the
3 initiation or course of any other proceeding authorized by law and reviewable pursuant to
Chapter 2...

4 “The **litigation privilege** . . . applies to any communication (1) made in judicial proceedings; (2)
5 by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that
6 have some connection or logical relation to the action.” (*L.G. v. M.B.* (2018) 25 Cal.App.5th 211, 219.)
7 The **litigation privilege** “is not limited to statements made during a trial or other proceedings, but may
8 extend to steps taken prior thereto, or afterwards.” (*Digerati Holdings, LLC v. Young Money*
9 *Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Pre-litigation statements are protected where
10 litigation is “contemplated in good faith and under serious consideration.” (*Id.*) “The wording of the statute
11 protects the right of litigants to the utmost freedom of access to the courts without fear of being harassed
12 subsequently by derivative tort actions.” (*Trinity Risk Mgmt., LLC v. Simplified Lab. Staffing Sols., Inc.*
13 (2021) 59 Cal.App.5th 995, 1004.)

14 Courts interpret “protected activity” broadly. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23.)
15 The requirement is that “the principal thrust or gravamen of the plaintiff’s cause of action” arises from
16 protected activity. (*Martinez v. Metabolife Inter’t* (2003) 113 Cal.App.4th 181, 188.) Protected activity
17 includes, in part, “any written or oral statement or writing made in connection with an issue under
18 consideration or review by a legislative, executive, or judicial proceeding... “[and] any written or oral
19 statement or writing made in connection with an issue under consideration or review by a legislative,
20 executive, or judicial body.” (Code Civ. Proc. § 425.16(e)(1)-(2).) **In short, “[s]tatements made in**
21 **litigation, or in connection with litigation, are protected by” the Anti-SLAPP statute.** (*Bergstein v.*
22 *Stroock & Stroock & Lavan LLP* (2015) 236 Cal. App. 4th 793, 803.) “When evaluating whether the
23 defendant has carried its burden under the first prong of the Anti-SLAPP statute, courts must be careful
24 to distinguish allegations of conduct on which liability is to be based from allegations of motives for such
25 conduct. Causes of action do not arise from motives; they arise from acts.” (*Hunter v. CBS Broadcasting,*
26 *Inc.* (2013) 221 Cal.App.4th 1510, 1520.) Finally, the Anti-SLAPP statute “squarely applies to any direct
27 attack on the *judgment* in [a] prior action, which resulted from [an opposing party’s] petition activity.”
28 *Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 648 (*disapproved of on other grounds*).

1 Regardless, even if the jury had disagreed with CSAA, the mere fact that CSAA had issued an
2 early phase denial letter does not justify a new *third party* action against the carrier—here: to set aside
3 judgment. Plaintiff also alleges that CSAA “funded, directed, and controlled the defense.” (*FAC* p. 2, line
4 1-2). Not only is this not actionable, but these acts are wholly within the **litigation privilege** and required
5 under the Insurance Code and the insurance policy, as a part of CSAA’s duty to defend its Insured.

6 Third, Plaintiff claims that CSAA “obstructed Plaintiff’s ability to present material evidence,
7 including:

- 8 a. a 911 call recording containing Defendant Abdelhalim's party admission ("I barely hit
 him with anything"),
- 9 b. body-worn camera footage containing eyewitness statements, and
- 10 c. CAD logs.” (*FAC* p. 3, line 6-9).

11 How Plaintiff *believes* that CSAA effectuated this “obstruction” is not at all clear. However, even
12 if CSAA did ratify PSA’s litigation tactics of seeking to exclude evidence from trial, that activity (an
13 insurance carrier directing its defense counsel to file motions in limine) would clearly constitute litigation
14 activity, and would be **protected conduct**. (See *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751,
15 767 (concluding that an allegation that a defendant engaged in unlawful, unfair, and fraudulent business
16 acts and practices “by filing motions or pleadings [in] court” and “by filing a civil lawsuit” squarely
17 concerned protected activity under the Anti-SLAPP statute and was subject to dismissal).

18 Fourth, and finally, Plaintiff’s *FAC* goes on to further impute the acts of PSA, as against CSAA.
19 Plaintiff cites no authority for the proposition that he can hold an insurance company (here, CSAA)
20 responsible for the litigation conduct of its insurance defense counsel. Still, that issue need not be reached
21 to find that the conduct here, by PSA, was protected litigation activity. Plaintiff alleges that:

22 “[t]he defense then made false and misleading representations to the Court about receipt,
23 possession, and prior production of [the “material evidence”], falsely denying knowledge
24 and receipt despite having received [it] during discovery. The Court relied on those
25 representations to deny continuances, exclude materials, and defer admission, which
26 impaired Plaintiff’s ability to present the evidence in a usable, timely way at a liability-only
27 trial.” (*FAC* p. 2, line 9-13).

28 All this is protected pre-trial litigation conduct in arguing motions in limine and engaging in pre-
trial discovery. Moreover, to the extent that Plaintiff took issue with this Court’s rulings on motions in
limine, the proper vehicle for contesting those rulings is an Appeal—not this legally unsupportable
lawsuit.⁴ It also bears repeating that the defense motions in limine to exclude the “material evidence” were

⁴ Indeed, Plaintiff has filed an Appeal, which remains pending. (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case

denied, and that evidence was submitted to the jury, and Plaintiff was free to use that evidence to cross-examine the Insured—which he did, unsuccessfully. Ultimately, all the actions alleged against CSAA are acts that are protected litigation conduct under the Anti-SLAPP statute.

2. The Allegations Against CARBONE and CHAMBERS Also Target Protected Litigation Activity

Plaintiff also improperly targets the protected litigation conduct of CARBONE and CHAMBERS, which is squarely precluded by the Anti-SLAPP statute. First, Plaintiff alleges that CARBONE and CHAMBERS:

“had possession of the defense file when the 911 audio, body-worn camera footage, and CAD materials were served on defense counsel during discovery.” (*FAC* p. 6:13-14). Further claiming that “[o]n May 4, 2023, [CARBONE and CHAMBERS] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.” (*FAC* p. 6:15-18).

This is simply an allegation, if true, of negligence. Nothing here constitutes fraud, and even if it did, it would be protected as litigation conduct in the handling of pre-trial discovery.

Second, Plaintiff claims that:

“[t]his failure enabled [PSA] to make false and misleading representations to the Court that the materials were “news to me” and had not been received until the eve of trial, when in fact the defense had possessed them during [CARBONE and CHAMBERS’] tenure. (*FAC* p. 6:18-21).

Again, this is **protected conduct**, but further, these allegations are not even the conduct of these moving Defendants, CARBONE and CHAMBERS. This second allegation targets the litigation conduct of PSA as trial counsel. Still, the Anti-SLAPP statute bars this type of allegation, in kind.

Finally, third, Plaintiff alleges that “[CARBONE and CHAMBERS’] conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment. (*FAC* p. 6:21-22). The *FAC* provides no analysis on what specific conduct was “fraudulent,” with the exception of the above-listed, alleged, failure to transmit the full defense file. But again, handling pre-trial discovery while amidst litigation is precisely the activity contemplated in the **litigation privilege** and Anti-SLAPP statutes.

Defendants CARBONE and CHAMBERS simply litigated the case, pre-trial, and thereafter substituted in PSA, approximately two years before trial. What specific “misrepresentations” CARBONE and CHAMBERS made to the Court are not described whatsoever in the *FAC*. And even if those “misrepresentations” were described, it would not matter, as the statements would clearly fall within the

No. **A173827**); (see also RFJN **Ex. Q**, Plf’s Notice of Appeal; RFJN **Ex. R**, Plf’s Notice of Designating Record on Appeal).

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V. CONCLUSION

Plaintiff's FAC is simply another attempt to get a second bite at the apple—by relitigating all the same issues from his underlying case. All the activities alleged as wrongful are comprised of litigation conduct, which are squarely **protected conduct** under Code Civ. Proc. § 425.16 and Civ. Code § 47. Meanwhile, Plaintiff cannot demonstrate a probability of success on the merits of his claim. Therefore, Defendants respectfully request that the Court grant this Special Motion to Strike and impose attorneys' fees and costs against Plaintiff for necessitating this motion.

Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE, CARBONE,
SMITH & KOYAMA, AND MICHAEL R.
CHAMBERS

EXHIBIT P-06

Motion in Limine No. 6

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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That**
14 **Were Not Produced In Discovery Should Be Excluded**

15 Defendant seeks an order that Plaintiff will not be allowed to utilize at trial any document or
16 other evidence he has failed to produce in discovery. This Order applies to every stage of trial.
17 Violations of this Order shall be grounds for such relief as the Court, in its discretion, deems proper, up
18 to and including the granting of a mistrial. This Order shall be made pursuant to the court’s holding in
19 *Deeter v. Angus* (1986) 179 Cal.App.3d 241.

20 If Plaintiff failed to produce documents in his possession which were requested, this clearly
21 would constitute a misuse of the discovery process. Code of Civil Procedure § 2023. Courts have found
22 that withheld evidence, including documents, is appropriately excluded because, among other reasons, it
23 “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal. App. 3d at 255. Further, this Court
24 has the authority to exclude at trial any and all evidence that Plaintiff has withheld from discovery.
25 *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

26 This motion is made pursuant to the aforementioned authorities cited above. Any attempt by
27 Plaintiff to introduce evidence not previously disclosed in discovery would be improper, highly
28 prejudicial, and fundamentally unjust. Such failure to produce documents and other evidence should

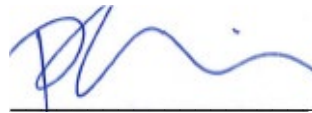
1 result in the exclusion of such evidence. Therefore, Defendant respectfully requests that the Court
2 exclude all documents and evidence, including but not limited to videos, photographs, recorded
3 materials, tangible items, or documents including audio of a 911 call purported to be related to the
4 incident, Plaintiff's documents showing past and future wage loss or other evidence that Plaintiff has
5 failed to produce in discovery.

6 **III. CONCLUSION**

7 For all the foregoing reasons, Defendant respectfully requests and moves to exclude the
8 aforementioned evidence.

9
10 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

11
12 

13 Robert K. Phillips
14 Priya Navaratnasingham
15 Alberto Reyna
16 Attorneys for Defendant
17 SUBHI ABDELHALIM
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EXHIBIT P-07

Motion in Limine No. 17

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
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Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 17 TO
PRECLUDE PLAINTIFF FROM USING
OR REFERENCING AN ALLEGED 911
TRANSCRIPT LOG AND AUDIO
RECORDING AS IT WAS NOT
DISCLOSED IN DISCOVERY, LACKS
FOUNDATION AND IS INADMISSIBLE
HEARSAY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded

1 from the jury's hearing. Although a Motion *in Limine* is not specifically mentioned by any California
2 statute, it has long been accepted as part of the Court's power to conduct trial in an orderly manner. (See
3 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
4 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
5 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
6 presence of a jury. See Cal. Evid. Code § 402.

7 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

8 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
9 DYLAN ROSARIO *in pro per* ("Plaintiff"), Plaintiff's witnesses, and any other parties and their agents,
10 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
11 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
12 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff's witnesses of the
13 Court's Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
14 discussed below.

15 **A. Purported 911 Log and Recording Should be Excluded as it Was Not Disclosed in**
16 **Discovery; Lacks Foundation and is Inadmissible Hearsay**

17 Defendant anticipates that Plaintiff will try to introduce an unauthenticated document entitled
18 "Official Transcript of 911 Call" and an unauthenticated audio recording which Plaintiff purports to be a
19 911 call log and an audio recording of a 911 call relating to the incident. First, this alleged log and
20 recording were not produced during discovery, rather produced at the **eleventh hour prior to trial.**
21 Second, both the alleged log and recording completely lack foundation, are not authenticated and is
22 inadmissible hearsay. Defendant has **no idea where this 911 call log** or audio recording came from and
23 who created it.

24 Defendant seeks an order precluding Plaintiff from offering the alleged 911 call log and the
25 recording into evidence as Plaintiff. This Order applies to every stage of trial. Violations of this Order
26 shall be grounds for such relief as the Court, in its discretion, deems proper, up to and including the
27 granting of a mistrial. This Order shall be made pursuant to the court's holding in *Deeter v. Angus*
28 (1986) 179 Cal.App.3d 241.

1 If Plaintiff failed to produce documents or audio recordings in his possession which were
2 requested, this clearly would constitute a misuse of the discovery process. Code of Civil Procedure §
3 2023. Courts have found that withheld evidence, including documents, is appropriately excluded
4 because, among other reasons, it “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal.
5 App. 3d at 255. Further, this Court has the authority to exclude at trial any and all evidence that Plaintiff
6 has withheld from discovery. *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

7 Further, California *Evidence Code* § 1401 provides: “(a) Authentication of a writing is required
8 before it may be received in evidence. (b) Authentication of a writing is required before secondary
9 evidence of its content may be received in evidence.”

10 California *Evidence Code* § 403 provides: “(a) The proponent of the proffered evidence has the
11 burden of producing evidence as to the existence of the preliminary fact, and the proffered evidence is
12 inadmissible unless the court finds that there is evidence sufficient to sustain a finding of the existence
13 of the preliminary fact, when: (1) The relevance of the proffered evidence depends on the existence of
14 the preliminary fact; (2) The preliminary fact is the personal knowledge of a witness concerning the
15 subject matter of his testimony; (3) The preliminary fact is the authenticity of a writing; or (4) The
16 proffered evidence is of a statement or other conduct of a particular person and the preliminary fact is
17 whether that person made the statement or so conducted himself.”

18 California *Evidence Code* § 1200 states that “(a) “Hearsay evidence” is evidence of a statement
19 that was made other than by a witness while testifying at the hearing and that is offered to prove the
20 truth of the matter stated. (b) Except as provided by law, hearsay evidence is inadmissible.”

21 “Hearsay may be briefly understood as an out-of-court statement offered for the truth of its
22 content. Evidence Code section 1200, subdivision (a) formally defines hearsay as “evidence of a
23 statement that was made other than by a witness while testifying at the hearing and that is offered to
24 prove the truth of the matter stated.” A “statement” is “oral or written verbal expression” or the
25 “nonverbal conduct of a person intended by him as a substitute for oral or written verbal expression.”
26 (Evid.Code, § 225.) Senate committee comments to Evidence Code section 1200 explain that a
27 statement “offered for some purpose other than to prove the fact stated therein is not hearsay.” [Internal
28 Citation Omitted] Thus, a hearsay statement is one in which a person makes a factual assertion out of

1 court and the proponent seeks to rely on the statement to prove that assertion is true. Hearsay is
2 generally inadmissible unless it falls under an exception. (Evid.Code, § 1200, subd. (b).)” (*People v.*
3 *Sanchez* (2016) 63 Cal. 4th 665, 674)

4 Plaintiff has not provided any information as to the source of this audio file and transcript log nor
5 provided any documentation that would certify or authenticate said transcript log and audio file. Plaintiff
6 has not laid any foundation to establish the authenticity of the purported 911 call log and the audio
7 recording. Plaintiff has not established the chain of custody for either the log or the recording. Defendant
8 has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the
9 identity of the custodian of the log and recording. It does not appear that either the log or the recording
10 were obtained via proper subpoena process.

11 The document which Plaintiff purports is an alleged 911 call log and the alleged audio recording
12 lack foundation and is inadmissible hearsay.

13 **III. CONCLUSION**

14 For all the foregoing reasons, Defendant respectfully requests and moves to preclude Plaintiff
15 from using or referencing a 911 audio recording and transcript log at trial.

16
17 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

18 

19 _____
20 Robert K. Phillips
21 Priya Navaratnasingham
22 Alberto Reyna
23 Attorneys for Defendant
24 SUBHI ABDELHALIM
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EXHIBIT P-08

So this is news to me

EXHIBIT C

Hearing Tr. Feb 18, 2025, excerpt (p. 141)

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Hearing Tr. Feb 18, 2025, p. 141

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

EXHIBIT P-09

They were provided by Dolan

1 for the body cams to be entered into evidence.

2 We would also like to use those. So we would
3 like to ask the Defense: Go ahead, provide the copies
4 of the body cams that they have retained from the San
5 Francisco Emergency Services so we can avoid this type
6 of problem, so they don't challenge the credibility.

7 They asked for the body cams, Your Honor, to
8 be admitted.

9 It is on their evidence list.

10 THE COURT: The question is -- I think the
11 ask is a request to review or to present the body cams
12 that are apparently on your exhibit list.

13 MS. NAVARATNASINGHAM: Sure. They were
14 provided by Dolan. He has had them for whatever,
15 sure.

16 THE COURT: All right. So what is the ask?
17 You don't have them?

18 MR. ROSARIO: No. I have them. I don't want
19 the same situation where they are going back saying we
20 don't know where they are from.

21 THE COURT: Mr. Rosario, let me put it this
22 way: If they are the only ones who had the video
23 recordings or the body cameras and for some reason you
24 never recovered them or retrieved them from the
25 Custodian of Records and so forth, and were not on
26 your exhibit list, you cannot come into the courtroom
27 and then ask the other side whether they would be
28 willing to part with those exhibits. It is their

EXHIBIT P-10

we subpoenaed the police records

1 A. I only was able to watch my body cam.

2 Q. Correct. So for this one -- this was filed,
3 I believe, on November 15th of 2024 -- on the
4 supplemental testimony regarding the incident.

5 MS. NAVARATNASINGHAM: Your Honor, for the
6 record, I do want to just state, as far as this
7 document goes, this is not -- we subpoenaed the police
8 records for the incident and this is not anything that
9 we received as part of the subpoena.

10 I do also want to note for the record the
11 incident occurred February 4, 2021.

12 It appears that this supplement was submitted
13 by Mr. Rosario on November 13, 2024, over three years
14 after the subject incident.

15 So I would say this is unreliable and lacks
16 foundation.

17 MR. ROSARIO: It is still part of the police
18 report. It has got the stamps on it, it says: SFPD
19 crime information services.

20 It is part of the report. We just clarified
21 "people are" and the Defense just asked: People are
22 supposed to add a supplement.

23 There is a supplement now.

24 THE COURT: It is -- sir, it may very well be
25 part of the original police report; however, number
26 one, it is beyond the scope of the original -- the
27 cross-examination in this matter.

28 She did not, as far as I recall, address

EXHIBIT P-11

Compex subpoena CA1147102-021

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): ALBERTO REYNA (BAR#: 347323) PHILLIPS, SPALLAS & ANGSTADT LLP 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411 E-MAIL ADDRESS: areyna@psalaw.net ATTORNEY FOR (Name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		FOR COURT USE ONLY CASE NUMBER: CGC-21-594102
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR		
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS		

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

CUSTODIAN OF RECORDS: **SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): **COMPEX LEGAL SERVICES**

On (date): **02/26/2024**

At (time): **09:00 A.M.**

Location (address): **325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503**

Do not release the requested records to the deposition officer prior to the date and time stated above.

- ☐ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
 - ☐ by delivered a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☒ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified):

RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO

DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, AND CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
(TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
(SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
(TITLE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: 6/6/1976
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556

EXHIBIT P-12

ordinary claims letter versus immunity claim

1 tration regarding Claim No. 1004-09-1054. On February 25, 2021, Defendant, through its Claims
2 Representative Sarah Rash, acting in the course and scope of her employment and authority as
3 Defendant's corporate speaker (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638), issued a
4 formal written claims-handling communication to Plaintiff affirmatively representing as a matter
5 of past historical fact that Defendant had already concluded its investigation of the claim and had
6 carefully reviewed the facts and circumstances of the claim. Those are the letter's exact words.
7 The alleged falsity concerns what Defendant had actually done before making that representation.
8 The letter does not state that public-safety records were gathered, and it does not state that no such
9 records existed. Said communication was issued years prior to any actual or contemplated judicial
10 proceeding.

11 3. Defendant transmitted this writing solely as a routine claims-handling and claim-disposition
12 communication in the ordinary course of its insurance business. The letter was generated and
13 sent by Defendant's claims representative in the performance of Defendant's ordinary claims-
14 administration function. It was not a demand letter, litigation notice, settlement demand, attorney-
15 to-attorney communication, or communication prepared for or in furtherance of a judicial pro-
16 ceeding. At the time the statement was made, no litigation between Plaintiff and Defendant was
17 pending, threatened, or contemplated; no complaint had been filed; no litigation demand had been
18 made; no attorney had appeared for Plaintiff in connection with the claim; no settlement negoti-
19 ations concerning contemplated litigation were underway; Defendant had not retained litigation
20 counsel concerning Plaintiff; Defendant's letter did not reference any anticipated judicial proceed-
21 ing; and no judicial proceeding existed to which the communication related. Defendant's letter
22 instead communicated its purported investigation and disposition of the insurance claim as routine
23 commercial claims disposition in the ordinary course of business. An insurer's internal business
24 decision cannot retroactively be recast as protected petitioning or Civil Code section 47, subdi-
25 vision (b), litigation conduct. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41
26 Cal.4th 1232, 1251; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396; *People ex rel. Fire Ins. Ex-*
27 *change v. Anapol* (2012) 211 Cal.App.4th 809, 824; *Nguyen v. Proton Technology Corp.* (1999)
28 69 Cal.App.4th 140, 147-148; *Shannon v. Telecommunications Co.* (1996) 45 Cal.App.4th 244,

1 13. Whenever this Complaint refers to “Defendant,” the reference includes Defendant CSAA
2 Insurance Exchange and, as later identified, those Doe defendants who participated in or ratified
3 the acts alleged.

4 **III. JURISDICTION AND VENUE**

5 14. This Court has subject-matter jurisdiction. This is an unlimited civil action wherein the amount
6 in controversy exceeds the jurisdictional threshold of thirty-five thousand dollars, exclusive of
7 interest and costs.

8 15. This Court has personal jurisdiction over Defendant. Defendant’s principal corporate offices
9 and claims administration facilities are located in Contra Costa County, where the tortious acts and
10 corporate decisions were formulated, executed, and communicated.

11 16. Venue is proper in Contra Costa County under Code of Civil Procedure section 395.5 because
12 Defendant’s principal place of business is situated in Contra Costa County, and the liability and
13 tortious conduct arose at Defendant’s Corporate Claims Operations located at 3055 Oak Road,
14 Walnut Creek.

15 17. The underlying vehicle-pedestrian collision of February 4, 2021, is cited solely as the external
16 historical occurrence prompting Defendant to open its internal file. This action does not seek
17 adjudication of underlying bodily injury damages, medical specials, or motor vehicle tort liability
18 from the collision itself.

19 18. This action does not allege that Defendant owed Plaintiff insurance benefits, that Defendant’s
20 insured was liable for the underlying collision, that Defendant breached an insurance contract with
21 Plaintiff, or that Defendant violated statutory settlement standards under Insurance Code section
22 790.03. Plaintiff expressly concedes that Defendant owed Plaintiff no common-law duty of good
23 faith, no contractual duty, and no Insurance Code section 790.03 duty to investigate. Liability, if
24 any, is solely for common-law deceit under Civil Code sections 1709 and 1710. Having volun-
25 tarily elected to issue a positive statement of past historical fact (that an investigation had been
26 concluded and available facts carefully reviewed), Defendant assumed an independent common-
27 law duty not to affirmatively misrepresent those physical acts (*Randi W. v. Muroc Joint Unified*
28 *Sch. Dist.* (1997) 14 Cal.4th 1066, 1081). Under the express reservation and carveout articulated

1 24. The electronic claim file, audit trails, and internal file-state were maintained exclusively within
2 Defendant's closed proprietary claims database. Access was strictly restricted to Defendant's per-
3 sonnel. Plaintiff was barred from access, lacked login credentials, and had no administrative
4 means to inspect internal file contents or verify whether Defendant had gathered emergency service
5 records.

6 25. File-state means the actual contents and omissions of Claim No. 1004-09-1054 at internal
7 closure, specifically including whether the file contained or lacked 911 audio, body-worn camera
8 recordings, and computer-aided dispatch records.

9 26. On February 25, 2021, Sarah Rash, Claims Representative of CSAA Insurance Exchange, sent
10 a written letter to Plaintiff concerning Claim No. 1004-09-1054. The letter is on AAA Insurance
11 letterhead showing P.O. Box 24523, Oakland, California 94623-1523, telephone 800.922.8228,
12 and fax 877.548.1610. The footer states "Policy issued by CSAA Insurance Exchange." The letter
13 is dated February 25, 2021. It is addressed to Franciscus Rosario at 835 Terry A Francois Blvd,
14 San Francisco, California 94158-2209. The reference block identifies Insured: Subhi Abdelhalim;
15 Claim No.: 1004-09-1054; Date of Loss: February 04, 2021. The greeting is "Dear Franciscus
16 Rosario:". The letter states: "We have concluded our investigation of your claim." It further
17 states: "Based on our investigation, and after carefully reviewing the facts and circumstances of
18 your claim, we have concluded that our insured is not liable for your damages resulting from
19 this loss. Therefore we must decline your claim. In addition, we dispute your right to recover
20 the amount of damages you have claimed." It further states: "Our decision is based on the facts
21 currently available." It is signed "Sincerely," then "Sarah Rash," "Claims Representative," with
22 the printed telephone number 856-209-7086. The medium is that letter. This Complaint does not
23 allege a telephone call or any other spoken statement by Sarah Rash. Walnut Creek is the claims-
24 administration location. The letterhead does not name Walnut Creek. A true and correct copy of
25 that February 25, 2021 letter is attached as Exhibit A and incorporated herein by reference.

26 27. Defendant transmitted this February 25, 2021 letter strictly as an ordinary business claims
27 communication. At that time no litigation was pending, threatened, or contemplated between the
28 parties; no demand for litigation had been made; no attorney had appeared for Plaintiff; no settle-

1 ment demand was pending; Defendant had not retained litigation counsel concerning Plaintiff; and
2 Defendant's letter did not reference any anticipated judicial proceeding. The February 25, 2021
3 communication preceded any actual or contemplated litigation by multiple years and was not made
4 in furtherance of, or in serious anticipation of, any judicial proceeding. The absolute privilege of
5 Civil Code section 47, subdivision (b), and the protections of Code of Civil Procedure section
6 425.16 therefore do not apply. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41
7 Cal.4th 1232, 1251; *Flatley v. Mauro* (2006) 39 Cal.4th 299, 320; *People ex rel. Fire Ins. Ex-*
8 *change v. Anapol* (2012) 211 Cal.App.4th 809, 824; *Nguyen v. Proton Technology Corp.* (1999)
9 69 Cal.App.4th 140, 147-148.) Defendant later described the same writing as an ordinary claims-
10 disposition communication issued in ordinary claims-investigation work, and as routine practice in
11 the insurance industry. That factual description confirms that the communication was an ordinary
12 commercial act rather than petitioning activity. Whether Civil Code section 47, subdivision (b), or
13 Code of Civil Procedure section 425.16 applies is a question of law on the 2021 facts in paragraphs
14 3 and 27, not a label Defendant may attach after the fact. No judicial proceeding between Plaintiff
15 and Defendant existed on that date.

16 28. In that February 25, 2021 communication, Defendant affirmatively represented in writing the
17 sentences quoted in paragraph 26.

18 29. Those representations were affirmative statements of historical and existing material fact re-
19 garding the actual execution and completion of an investigative review. Defendant's statements did
20 not constitute non-actionable expressions of opinion or legal argument, but rather positive, affirma-
21 tive assertions of existing historical fact regarding specific operational acts Defendant claimed to
22 have completed, including that an institutional inquiry had been physically performed. (Civ. Code,
23 sec. 1710, subd. (1); *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487-489; *Vega v. Jones, Day, Reavis*
24 *& Pogue* (2004) 121 Cal.App.4th 282, 291.)

25 30. The statements were factually false when made. At the time the letter was sent, Defendant's
26 claim file and production records contained no 911 audio, no body-worn camera recordings, no
27 CAD records, no documented request for those records, no receipt of those records, and no docu-
28 mented review of those records regarding the February 4, 2021 vehicle-pedestrian collision. The

1 trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of
2 judgments and avoiding an unending roundelay of litigation, an evil far worse than an
occasional unfair result.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322.)

3 Here, CSAA reviewed the available evidence, including the statements of its Insured, and reached
4 a prompt denial position. This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty
5 to promptly investigate Plaintiff’s then-pending claim, as codified in Insurance Code § 790.03 and 10 Cal.
6 Code Regs. § 2695.7, the latter of which provides: “Upon receiving proof of claim, every insurer[] ...
7 shall immediately, but in no event more than forty (40) calendar days later, accept or deny the claim, in
8 whole or in part.” This is precisely what CSAA did: comply with its statutory duty and issue a denial letter
9 with an understanding that “litigation [was] imminent” unless Plaintiff’s claim was accepted. (*Aronson*,
10 *supra*, 58 Cal.App.4th at 271.) This is a protected pre-litigation statement, protected by the Anti-SLAPP
11 statute.

12 **2. The FAC’s Claim that CSAA’s Denial Letter “Was Materially False” Because CSAA**
13 **“had not Obtained or Reviewed ... Objective Liability Evidence for the Incident” Again**
14 **Targets Protected Conduct (FAC ¶ 4)**

15 The same analysis above applies here to the alleged *falsity* of CSAA’s Denial Letter. This
16 allegation remains focused on protected conduct.

17 “The privilege extends beyond statements made in the proceedings, and includes statements made
18 to initiate official action.” (*Kashian, supra*, 98 Cal.App.4th at 913.) (*See Cabral v. Martins* (1999) 177
19 Cal.App.4th 471, 482 (“Case law establishes that communications that are intimately intertwined with,
20 and preparatory to, the filing of judicial proceedings qualify as petitioning activity for the purpose of the
21 anti-SLAPP statute.”) And “[a]ny doubt about whether the privilege applies is resolved in favor of
22 applying it.” (*Adams v. Superior Court* (1992) 2 Cal.App.4th 521, 529.) Furthermore, “communications
23 made in connection with litigation do not necessarily fall outside the privilege simply because they are, or
are alleged to be, fraudulent, perjurious, unethical, or even illegal.” (*Ibid.* at 920.)

24 CSAA’s issuing of a liability denial letter is a statutory and regulatory requirement in the context
25 of a submitted claim and pending litigation. The FAC alleges that CSAA’s denial letter was “materially
26 false,” or put simply: incorrect. It is not clear if the FAC intends to allege that, either i) the denial letter
27 was false insofar as CSAA had not actually closed its investigation into liability; or ii) the denial letter
28 was false insofar as CSAA should have reached a different conclusion and accepted the claim. Either way,

1 it is immaterial how Plaintiff thinks the denial letter was “false.” The issuance of that denial letter—be it
2 false, negligently issued, fraudulent, or otherwise—is protected conduct and subject to the Anti-SLAPP
3 statute’s protections. This is especially so as CSAA knew that this denial was likely “to initiate official
4 action” on Plaintiff’s part in filing his lawsuit. (*Kashian, supra*, 98 Cal.App.4th at 913.)

5 **3. Plaintiff’s Claim that “CSAA Funded and Directed the Defense” and Made “False and**
6 **Misleading Representations” to the Court While Maintaining its “Litigation-Stage**
7 **Denial Posture” Targets Protected Conduct (FAC ¶ 22F)**

8 These allegations now reach directly into the courtroom and allege that statements made by
9 CSAA—by and through its insurance defense counsel—are somehow actionable. They are not. Plaintiff’s
10 FAC alleges that the activities of CSAA—by and through its retained defense counsels—were “false or
11 misleading” to the Court. (FAC ¶ 22F). This is incontrovertibly protected conduct under the Anti-SLAPP
12 statute’s protection.

13 Statements and actions defending a client or insured are protected activity under California’s Anti-
14 SLAPP statute. (*See City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 767 (concluding that an
15 allegation that a defendant engaged in unlawful, unfair, and fraudulent business acts and practices “by
16 filing motions or pleadings [in] court” and “by filing a civil lawsuit” squarely concerned protected activity
17 under the Anti-SLAPP statute and was subject to dismissal). Anti-SLAPP protection also, necessarily,
18 applies to “making representations to [a] court, or preparing documents for filing in court.” (*Graham-Sult*
19 *v. Clainos* (9th Cir. 2014) 756 F.3d 724, 736.) (*See, also, Dove Audio, Inc. v. Rosenfeld, Meyer & Susman*
20 (1996) 47 Cal.App.4th 777, 784 (“Just as communications preparatory to or in anticipation of the bringing
21 of an action or other official proceeding are within the protection of the litigation privilege of Civil Code
22 [§ 47(b)], we hold that such statements are equally entitled to the benefits of section 425.16.”) Further,
23 “a complaint [need not] be drafted before the privilege will apply.” (*Aronson, supra*, 58 Cal.App.4th at
24 268.)

25 CSAA, by and through its retained insurance defense counsel, simply defended Insured at trial and
26 disputed the relevance of the cited “objective liability evidence.” (FAC ¶ 4). CSAA, through its retained
27 counsels, maintained through jury trial the original “liability-claim denial” posture, as articulated in
28 CSAA’s initial denial letter. (*Id.* at 1.) Admittedly, the FAC is not clear on exactly *how* “CSAA-funded
counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading

EXHIBIT J-01

Vehicle Code sections not evidence

1 question number one means that either somebody has
2 accessed external information specifically about
3 vehicle codes in order to clarify.

4 The Defense should have also -- if they
5 wanted to have those codes in there, they should have
6 provided them to the Jury. They did not.

7 Both of those facts prove there is extraneous
8 Juror misconduct of accessing external information
9 that severely prejudices my case.

10 THE COURT: All right. Is the matter
11 submitted?

12 MR. ROSARIO: Yeah. Thank you, Your Honor.

13 MS. NAVARATNASINGHAM: Yes.

14 THE COURT: All right. First, the motion for
15 a mistrial is denied.

16 With regard to Jury request form number one,
17 first of all, you did not object to the language that
18 was submitted to the Jury.

19 The Court presented that response in Jury
20 request number one to each party before delivering it
21 to the Jury.

22 You've waived that request, sir.

23 In that matter, with regard to Jury request
24 form number one, the Court answered: You may not
25 consider Vehicle Code Sections 22107 and or 21804
26 subdivision A, nor will the Court instruct the Jury on
27 those provisions.

28 That is a sufficient instruction for the Jury

1 to abide by.

2 There has been no evidence that the Jury has
3 considered that as a part of its deliberations.

4 Further, I will point out -- I don't think I
5 needed to point this out -- but neither Vehicle Codes
6 Section 22107 nor 21804 subdivision A were part of the
7 evidence.

8 They simply are not permitted to consider
9 that as evidence in the case, period.

10 Now turning to Jury request form number two,
11 the relevant request here from the Jury, in pertinent
12 part, "Is there a relevant legal definition of
13 'vehicle?', close quote" that we should consider in
14 assessing this testimony?"

15 Question.

16 Answer: Vehicle Code Section provides,
17 quote, "a vehicle is a device by which any person or
18 property may be propelled, moved or drawn upon a
19 highway excepting a device moved exclusively by human
20 power or used exclusively upon stationery rails or
21 tracks."

22 Vehicle Code Section 360 defines "highway"
23 as: "A way or place of whatever nature publicly
24 maintained and open to the use of the public for
25 purposes of vehicle travel. 'Highway' includes
26 street," close quote.

27 The Court -- even if this was something that
28 was gratuitous on the part of the Court, the Court is

EXHIBIT J-02

CGC-25-631801 anti-SLAPP order

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11 Attorneys for Defendant

12 CSAA INSURANCE EXCHANGE

FILED
San Francisco County Superior Court

AUG 6 2026

CLERK OF THE COURT

BY: 
Deputy Clerk

9 **SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO**

10
11 FRANCISCUS DYLAN ROSARIO,

CASE NO.: CGC-25-631801

12 Plaintiff,

13 v.

14 CSAA INSURANCE EXCHANGE,

15 Defendant.


[PROPOSED] ORDER GRANTING
DEFENDANT CSAA INSURANCE
EXCHANGE, MICHAEL CHAMBERS,
AND CARBONE, SMITH & KOYAMA's
MOTION TO STRIKE AMENDED
COMPLAINT.

16
17 Date: May 12, 2026

18 Time: 9:00AM

19 Dept: 301

20 Complaint Filed: December 23, 2025

21 Amended Complaint Filed: February 25, 2026

22
23 Defendant CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, AND
24 CARBONE SMITH & KOYAMA ("Defendant") Motion to Strike Plaintiff's Amended Complaint
25 came for hearing on May 12, 2026, in the above referenced court. Tyler J. O'Connell appeared as
26 counsel for Defendant and FRANCISCUS DYLAN ROSARIO appeared as pro-per as Plaintiff.
27 Having considered Defendant's Motion to Strike Amended Complaint, and good cause appearing
28 therefore,


1
[PROPOSED] ORDER GRANTING DEFENDANT CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS,
AND CARBONE, SMITH & KOYAMA'S MOTION TO STRIKE AMENDED COMPLAINT

JUL 13 REC'D

1 Hearing held. ARGUED. Court having reviewed the pleadings and having heard oral argument rules
2 as follows:

3 **IT IS HEREBY ORDERED:**

4 Defendants' anti-SLAPP motion to strike is GRANTED. Defendants are entitled to fees and
5 may make a separate motion or seek fees with their cost bill, but a request for a particular amount
6 of fees for the first time on reply does not give sufficient notice.

7 The court broadly construes the anti-SLAPP statute. (Code Civ. Proc., § 425.16, subd. (a).)
8 Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows that the
9 plaintiff's claims arise from protected activity (prong one), then the burden "shifts to the plaintiff to
10 demonstrate the merit of the claim by establishing a probability of success" (prong two). (*Baral v.*
11 *Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must make a "prima facie factual
12 showing sufficient to sustain a favorable judgment." (*Id.*, at p. 385.) In performing its analysis, the
13 court looks to the pleadings, declarations or affidavits, and judicially noticeable material concerning
14 the facts upon which liability is based. (Code Civ. Proc., § 425.16, subd. (b)(2).)

15 "[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong
16 complained of, and not just evidence of liability or a step leading to some different act for which
17 liability is asserted." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th
18 1057, 1060 [emphasis in original].) Defendants meet prong one of the anti-SLAPP statute. The First
19 Amended Complaint ("FAC") arises from protected activity under Code of Civil Procedure, §
20 425.16, subd. (e)(2) ["any written or oral statement or writing made in connection with an issue
21 under consideration or review by a...judicial body"]. "Statements made in litigation, or in
22 connection with litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock*
23 *& Lavan LLP* (2015) 236 Cal.App.4th 793, 803; *Navellier v. Sletten* (2002) 29 Cal.4th 82, 90 ["The
24 constitutional right of petition encompasses the basic act of filing litigation."] [citation simplified];
25 *Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092 [equitable action to vacate a judgment
26 triggered prong one of the anti-SLAPP statute].)

27 //

28 //

1 The court grants defendants' motion to strike the FAC in its entirety. Defendants may seek fees
2 by separate motion. (Code Civ. Proc., § 425.16, subd. (c)(1).) The court does not consider plaintiff's
3 various supplemental opposition briefs, which were filed without authorization, but does consider
4 plaintiff's requests for judicial notice.

5
6 **IT IS SO ORDERED.**

7
8
9 Dated: 8/6/2016



JUDGE OF THE SUPERIOR COURT
CHRISTINE VAN AKEN

EXHIBIT J-03

CGC-25-631802 special motion to strike

Order prepared by the court

FILED
San Francisco County Superior Court

JUL 01 2026

CLERK OF THE COURT

BY: [Signature]
Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Dept. 301

FRANCISCO DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE, et al.,

Defendants.

Case No. CGC-25-631802

**ORDER GRANTING SPECIAL
MOTION TO STRIKE FIRST
AMENDED COMPLAINT AND
DENYING OTHER RELIEF**

This order disposes of all motions that were heard in this case in Department 301 on June 24, 2026.

Order on Special Motion to Strike

Defendant CSAA Insurance Exchange's special motion to strike plaintiff's First Amended Complaint is granted. Plaintiff's first amended complaint (FAC), filed on February 25, 2026, alleges that he was harmed by CSAA's misrepresentation in its letter denying an insurance claim that it had made and concluded an investigation. According to the FAC, he was damaged because the letter led him to believe that evidence had been collected and preserved and CSAA had made an adequate investigation. Although plaintiff

1 now seeks to recharacterize the FAC as targeting the denial itself and not the representations
2 in the letter, the FAC pleads that plaintiff was harmed by the representation.

3 The court broadly construes the anti-SLAPP statute. (Code Civ. Proc., § 425.16, subd.
4 (a)¹.) Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows
5 that the plaintiff's claims arise from protected activity (prong one), then the burden "shifts to
6 the plaintiff to demonstrate the merit of the claim by establishing a probability of success"
7 (prong two). (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must
8 make a "prima facie factual showing sufficient to sustain a favorable judgment." (*Id.* at 385.)
9 In performing its analysis, the court looks to the pleadings, declarations or affidavits, and
10 judicially noticeable material concerning the facts upon which liability is based. (§ 425.16,
11 subd. (b)(2).)

12
13 "[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong
14 complained of, and not just evidence of liability or a step leading to some different act for
15 which liability is asserted." (*Park v. Board of Trustees of California State University* (2017)
16 2 Cal.5th 1057, 1060.) Defendant meets prong one of the anti-SLAPP statute as the First
17 Amended Complaint ("FAC") arises from protected activity under § 425.16, subdivision
18 (e)(2) ["any written or oral statement or writing made in connection with an issue under
19 consideration or review by a...judicial body"]. Plaintiff's action is based on defendant's
20 litigation conduct. (FAC, par. 22F.) "Statements made in litigation, or in connection with
21 litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock & Lavan*
22 *LLP* (2015) 236 Cal.App.4th 793, 803; *City of Colton v. Singletary* (2012) 206 Cal.App.4th
23 751, 767 [filing motions and other litigation conduct triggers the anti-SLAPP statute].)

24
25
26
27
28 ¹ All subsequent statutory citations are to the Code of Civil Procedure except where
otherwise noted.

1 Plaintiff's pre-litigation denial letter also implicates the anti-SLAPP statute. (FAC,
2 pars. 1, 2, 4, 22D.) "Case law establishes that communications that are intimately
3 intertwined with, and preparatory to, the filing of judicial proceedings qualify as petitioning
4 activity for the purpose of the anti-SLAPP statute." (*Cabral v. Martins* (1999) 177
5 Cal.App.4th 471, 482; see also *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1285 [notice
6 of rescission of contract given as prerequisite to litigation was protected communication
7 under § 425.16].)

9 Plaintiff's illegality argument fails. "Conduct that would otherwise come within the
10 scope of the anti-SLAPP statute does not lose its coverage ... simply because it is alleged to
11 have been unlawful or unethical. An exception to the use of section 425.16 applies only if a
12 defendant concedes, or the evidence conclusively establishes, that the assertedly protected
13 speech or petition activity was illegal as a matter of law. The exception does not apply here."
14 (*Birkner v. Lam* (2007) 156 Cal.App.4th 275, 285 [citation simplified].)

16 Section 425.17, subdivision (b), does not apply. Plaintiff is not bringing this action
17 "solely in the public interest or on behalf of the general public." Section 425.17, subdivision
18 (c), is also inapplicable because defendant was not promoting commercial activity towards
19 the plaintiff. Rather, defendant was engaging in litigation-related activity.

21 Since defendants meet prong one, the plaintiff must establish via admissible evidence
22 a probability of prevailing on the claims (prong two). (See *Computer Xpress, Inc. v. Jackson*
23 (2001) 93 Cal.App.4th 993, 1010.) Plaintiff cannot establish his claims because the litigation
24 privilege bars them. (Civ. Code, § 47, subd. (b).)

26 "The usual formulation is that the privilege applies to any communication (1) made in
27 judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law;
28 (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical
relation to the action." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Defendants establish

1 these elements. “Any doubt about whether the privilege applies is resolved in favor of
2 applying it.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) The privilege applies
3 to defendant’s defense conduct including the prelitigation denial letter. (*Dove Audio, Inc. v.*
4 *Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 784 [“Just as communications
5 preparatory to or in anticipation of the bringing of an action or other official proceeding are
6 within the protection of the litigation privilege of Civil Code [§ 47(b)], we hold that such
7 statements are equally entitled to the benefits of section 425.16.”]; *Nguyen v. Proton*
8 *Technology Corp.* (1999) 69 Cal.App.4th 140, 147 [The California Supreme Court “made
9 clear that the ‘litigation privilege’ applies to pre-litigation communications as well as those
10 occurring during the course of actual litigation.”].)

12 The court therefore grants the special motion to strike the First Amended Complaint.

13 Defendant’s request for fees is denied without prejudice to a subsequent motion. The
14 court cannot grant fees on the basis of a reply declaration, which does not give plaintiff the
15 opportunity to respond.
16

17 Order on Motion for Leave to File Third Amended Complaint

18 Plaintiff’s renewed motion to amend is denied. There is no express or implied right to
19 amend a pleading once a special motion to strike has been granted. (See *Simmons v. Allstate*
20 *Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073.)
21

22 Order on Demurrer to Amended Complaint

23 Off calendar as moot in light of the court’s order granting the special motion to strike
24 the First Amended Complaint.

25 Order on Motion to Strike Amended Complaint

26 Off calendar as moot in light of the court’s order granting the special motion to strike
27 the First Amended Complaint.
28